



CHAPTER v.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to East Lothian (Western District) Water. [15th December 1922.] A.D. 1922

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in Schedule.

2. This Act may be cited as the East Lothian (Western District) Water Order Confirmation Act 1922 (Session 2). Short title.

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SCHEDULE.

EAST LOTHIAN (WESTERN DISTRICT) WATER.

Provisional Order to constitute and incorporate a Board for the supply of water to the western district of the county of East Lothian to transfer to the Board the water undertakings of the county council and the Western District Committee of the county of East Lothian and the undertakings of the burghs of Prestonpans and Cockenzie and Port Seton to authorise the Board to construct additional waterworks to confer further powers on the Board and for other purposes.

WHEREAS the county council of the county of East Lothian (hereinafter referred to as "the county council") are the local authority for the county of East Lothian in the execution of the Public Health (Scotland) Act 1897 and Acts amending the same with respect to acquiring and holding lands rating and borrowing and the Western District Committee of the county council (hereinafter referred to as "the Western Committee") are the local authority for the execution of such Acts within the western district of the county except with respect to the matters before mentioned :

And whereas under the powers of the Public Health (Scotland) Act 1897 part of the western district was by decree of the sheriff of the Lothians and Peebles formed into a special water supply district under the name of the special water supply district of Prestonpans and Tranent (landward) :

And whereas the provost magistrates and councillors of the burghs of Prestonpans and Cockenzie and Port Seton are the local authority for their respective burghs :

And whereas the Western Committee the town council of Prestonpans and the town council of Cockenzie and Port Seton have combined together for the purpose of providing a water supply to the special water supply district of Prestonpans and Tranent (landward) and the burghs of Prestonpans and Cockenzie and Port Seton

and a joint committee for the purpose of the management and maintenance of the water supply to their respective districts was appointed known as the Prestonpans Combination Water Trust : A.D. 1922.

And whereas the county council under an Order of the Local Government Board for Scotland in pursuance of the Public Health (Scotland) Act 1897 were authorised to purchase lands and water rights at Kidlaw in the year one thousand nine hundred and one for the area of the Prestonpans Combination Water Trust and by a similar Order the county council were authorised to purchase lands and water rights at Stobshiel in the year one thousand nine hundred and ten for the supply of the western district of the county of East Lothian :

And whereas the Western Committee and the town councils of Prestonpans and Cockenzie and Port Seton have constructed a reservoir at Kidlaw and the Prestonpans Combination Water Trust are supplying water therefrom within their area and the Western Committee have constructed a reservoir at Stobshiel and are supplying water therefrom within the western district of the county :

And whereas by the Prestonpans Combination Water Supply (Finance) Order 1912 the period for the repayment of moneys borrowed for the Kidlaw water supply was extended :

And whereas the present supply of water is insufficient for the wants and health and convenience of the inhabitants of the area managed by the Prestonpans Combination Water Trust and the Western Committee :

And whereas it would be to the mutual interests of the Western Committee and the town councils of Prestonpans and Cockenzie and Port Seton that their water undertakings should be amalgamated :

And whereas the combined water resources of the county council of the Western Committee and of the town councils if fully developed and supplemented by the supply to be obtained by the works hereinafter mentioned will be amply sufficient to afford an adequate supply of water not only to the districts at present supplied by those bodies but also to certain parts of the county which are at present supplied by other bodies and to other parts of the county where an adequate supply of water is urgently required :

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And whereas in the circumstances stated and in order to simplify the arrangements for the supply of water in the districts hereinbefore mentioned and to promote efficiency and economy in the administration development and use of the water available for the supply of those districts it is expedient that a Board (hereinafter referred to as "the Board") should be constituted and charged with the duty of administering the supply of water to such districts and that the water undertakings of the county council and the Western Committee and of the town councils should be transferred to the Board :

And whereas having regard to the objects of this Order it is expedient that the existing special water supply districts within the western district situate within the limits of supply of the Board should be abolished and that the Board should become responsible for the supply of water to those districts and that such provisions should be made with regard to the existing agreements and provisions for the supply of water therein as are contained in this Order :

And whereas it is expedient to confer on the Board all such powers as are necessary or expedient for the conduct of their undertaking and as are usually conferred in relation to water undertakings :

And whereas it is expedient to enable the Board to levy and recover rates assessments and charges for the supply of water :

And whereas in order to give full effect to the objects of this Order it is expedient that the Board should be authorised to make and maintain the waterworks and other works by this Order authorised and to borrow money for the purposes of the works authorised by this Order and for the general purposes of their undertaking :

And whereas estimates have been prepared for the purchase of land for and for the execution of the works by this Order authorised and such estimates are as follows :—

	£
Purchase of land and servitudes - - - -	9,650.
Storage reservoir embankments and relative works - - - - -	89,424
Roads of access - - - - -	3,921
Catchwater channels or conduits - - - -	16,167
Trunk mains - - - - -	44,500
Subsidiary works - - - - -	19,075

And whereas the said works are permanent works and it is expedient that the cost thereof should be spread over a number of years : A.D. 1922.
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And whereas plans and sections showing the lines and levels of the several works authorised by this Order and books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes of or under the powers of this Order were duly deposited in the office at Haddington of the principal sheriff clerk of the county of East Lothian and are hereinafter respectively referred to as “ the deposited plans sections and books of reference ” :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Short title.
East Lothian (Western District) Water Order 1922.

2. This Order shall (except as otherwise in this Order provided) commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “ the commencement of this Order.” Commence-
ment of
Order.

3. In this Order unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the following expressions shall have the meanings respectively hereinafter assigned to them namely :— Interpreta-
tion.

The expression “ the Board ” means the Board incorporated by this Order;

The expression “ the county council ” means the county council of the county of East Lothian;

The expression “ the Western Committee ” means the western district committee of the county council;

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The expression "town councils" means the town councils of Prestonpans and Cockenzie and Port Seton;

The expressions "the town council of Prestonpans" and "the town council of Cockenzie and Port Seton" mean the provost magistrates and councillors of those burghs respectively;

The expression "Prestonpans Combination Water Trust" means the joint committee appointed by the Western Committee and the town councils of Prestonpans and of Cockenzie and Port Seton to manage and maintain the Kidlaw water supply;

The expression "the date of transfer" means the fifteenth day of May one thousand nine hundred and twenty-three;

The expression "the limits of supply" means and includes the burghs parishes and parts of parishes in the county of East Lothian mentioned and described in the First Schedule to this Order;

The expression "valuation roll" or "valuation rolls" means the valuation roll or rolls for the county made up in terms of the Lands Valuation (Scotland) Act 1854 and Acts amending and extending the same;

The expression "the sheriff" means the sheriff of the Lothians and Peebles and includes his substitute at Haddington.

Incorporation of Acts.

4. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order:—

The Commissioners Clauses Act 1847 with the exception of sections 6 7 12 13 14 15 16 36 37 39 45 46 47 48 54 57 65 66 84 86 87 92 93 94 95 and 106 and with the exception of the sections with respect to the election and rotation of commissioners where the commissioners are to be elected by the ratepayers or other like class of electors and with the exception of the sections with respect to the mortgages to be executed by the commissioners (but not including in such exception sections 76 78 79 83 and 85);

The Lands Clauses Acts;

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The Waterworks Clauses Act 1847 except the sections and provisions thereof with respect to—

(a) the communication pipes to be laid by the undertakers;

(b) the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit;

(c) the words in section 44 thereof “with the
“ consent in writing of the owner or reputed
“ owner of any such house or of the agent
“ of such owner”; and

(d) also except sections 68 70 and 72;

The Waterworks Clauses Act 1863; and

The sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith;

This Order shall be deemed a special Act within the meaning of the provisions of the said Acts wholly or partly incorporated herewith.

5. For the purpose of carrying this Order into execution there shall be a Board constituted as by this Order provided and the members of the Board and their successors shall be a body corporate by the name of “the East Lothian Western District Water Board” and by that name shall have perpetual succession and a common seal and shall have power to take purchase hold and dispose of lands and other property for the purposes of this Order and with all the other powers and privileges of a body corporate.

Incorporation of Board.

6. The constitution of the Board shall be as follows:—

Constitution of Board.

The chairman for the time being of the Western Committee;

Two members to be appointed by the county council from among the members of that council;

Nine members to be appointed by the Western Committee from among the members (other than the chairman) of that committee;

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Two members to be appointed by the town council of Cockenzie and Port Seton from among the members of that town council;

Two members to be appointed by the town council of Prestonpans from among the members of that town council;

The members appointed by the said town councils are hereinafter referred to as "burgh members" and the members appointed by the county council and the Western Committee are hereinafter referred to as "county members."

Appoint-
ment of
members of
Board.

7.—(1) The first appointment of burgh members and of county members shall be made at meetings of the said town councils the Western Committee and the county council respectively to be held within two months from the commencement of this Order or within such further time as the Secretary for Scotland may direct and the burgh members and the county members then appointed shall subject to the provisions of this Order continue in office until the appointment of their successors in terms of the immediately succeeding subsection.

(2) Subsequent appointments of burgh members and county members shall be made as regards burgh members at the first meeting of each town council held after the annual election of town councillors and as regards county members at the first meeting of the Western Committee and the county council respectively held after the triennial election of county councillors both in the year one thousand nine hundred and twenty-five and in every third year thereafter and the burgh members and the county members then appointed shall hold office until the appointment of their successors in terms of this subsection.

Provision
when
failure to
appoint.

8. If the said town councils or the Western Committee or the county council fail to appoint first members of the Board as provided by this Order it shall be competent nevertheless for the other members of the Board to carry this Order into execution and if any of the said bodies fail to appoint members of the Board at any subsequent period in terms of this Order the then existing members of the Board representing that body shall if still qualified continue in office till their successors are appointed.

9. Whenever an appointment of a member of the Board has been made the clerk to the body by whom the appointment was made shall by writing under his hand certify the appointment to the Board and in the case of the first appointment the certificate shall be transmitted to the clerk of the county council and on every subsequent appointment to the clerk of the Board. The name of the person holding the office of chairman of the Western Committee shall from time to time be certified in like manner by the clerk to the Western Committee.

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 Appoint-
 ment of
 members
 to be
 certified.

10. Subject to the provisions of this Order if a burgh member or a county member ceases to be a member of the body by whom he was appointed or becomes disqualified as a member of that body he shall cease to be a member of the Board except in a case when he only ceases to be a member of such body by rotation and is forthwith re-elected a member of that body.

Member to
 be dis-
 qualified on
 ceasing to
 be member
 of body
 by whom
 appointed.

11.—(1) No appointed member of the Board shall so long as he continues to be a member by virtue of such appointment be qualified also to be a member of the Board by appointment by any other body and any such subsequent appointment shall be void and if the same person shall be appointed by more than one body for the same period of office he shall choose under which appointment he will serve and the other appointment shall be deemed void.

No person
 to be
 member of
 Board on
 behalf of
 more than
 one body.

(2) If an appointed member of the Board becomes a member of the Board ex officio he shall cease to be an appointed member of the Board.

12. If an appointed member of the Board dies resigns or becomes disqualified or from any other cause ceases to be an appointed member of the Board the vacancy so caused shall be filled up as soon as conveniently may be by the appointment of another person to be a member of the Board. Any such appointment shall be made by the body which appointed the member whose place is to be filled up and the member so appointed shall continue in office so long only as the member in whose place he is appointed would have been entitled to continue in office.

Casual
 vacancies.

13. A member of the Board going out of office shall if otherwise duly qualified be eligible for re-appointment and every person re-appointed shall be deemed a new member.

Members
 going out
 of office
 eligible for
 re-election.

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Resigna-
tion of
members.

14. A member of the Board may resign his office by intimating his resignation to the Board in writing.

Disquali-
fication of
members.

15. A person shall not be disqualified from being a member of the Board by reason of his being interested :—

(a) In the sale purchase or lease of any land or any loan of money to the Board;

(b) In any newspaper in which any advertisement relating to the affairs of the Board is inserted.

First
meeting of
Board.

16. The Board shall hold their first meeting at eleven o'clock forenoon at Haddington within one month after the last appointment of first members shall have been certified as aforesaid Notice of such first meeting shall be sent by the clerk of the county council to each member of the Board at least five days before the meeting.

Election of
chairman
and vice-
chairman.

17. At the first meeting of the Board they shall by the majority of votes of the members of the Board present at the meeting elect two of their body to be their chairman and vice-chairman respectively until the next annual meeting of the Board when and at each subsequent annual meeting the Board shall in like manner elect a chairman and vice-chairman for the ensuing year and in case the chairman or vice-chairman dies or resigns or ceases to be a member of the Board or otherwise becomes disqualified to act as such the members of the Board present at the meeting next after the occurrence of such vacancy shall choose some other of their number to fill such vacancy and the chairman or vice-chairman so elected shall continue in office so long only as the person in whose place he is elected would have been entitled to continue chairman or vice-chairman and if at any meeting of the Board the chairman be not present the vice-chairman shall preside at such meeting and if neither the chairman nor the vice-chairman be present one of the members of the Board present shall be elected chairman for such meeting by the majority of the votes of the members of the Board present at such meeting.

Annual
and other
meetings.

18. The Board shall hold an annual meeting in each year and such other ordinary meetings as may be necessary The annual meeting and such other ordinary meetings shall be held on such days at such times and at such places as the Board may from time to time

appoint and the provisions of the Commissioners Clauses Act 1847 incorporated with this Order relating to monthly meetings shall apply to such ordinary meetings. A.D. 1922.
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19. In addition to the ordinary meetings to be held by appointment of the Board the chairman of the Board for the time being or any three or more members of the Board may at any time by writing addressed and sent to the clerk of the Board at his office and stating the business proposed to be transacted thereat require a special meeting to be convened and the clerk of the Board shall convene a meeting accordingly stating the business for which the meeting is convened. Provided that if the clerk of the Board fail for forty-eight hours after receipt of such notice to convene the special meeting the chairman or members of the Board desiring the meeting may himself or themselves convene the meeting by circular as hereinafter provided. Power to call special meetings.

20. Every meeting of the Board (other than the first meeting) shall (except as hereinbefore provided) be convened by the clerk of the Board by circular sent by post or delivered to each member of the Board at his residence or some other address appointed by him for the purpose in the case of ordinary meetings five clear days and in the case of special meetings two clear days at least before the day of meeting. As to convening meetings.

21. The number of members to be present to constitute a meeting of the Board shall be five. Quorum.

22. The Board may appoint committees for any purpose connected with the management or maintenance of the undertaking of the Board. Committees.

23. Subject to the provisions of this Order the Board may from time to time make alter and revoke standing orders for the regulation of their proceedings and business and of the proceedings and business of committees of the Board. Standing orders.

24. The Board may appoint officers and servants at such salaries and remuneration and on such terms as they may think fit and may from time to time remove any such officers and servants and may make regulations for defining the duties of any officers or servants of the Power to appoint officers &c.

[Ch. v.] *East Lothian (Western District)*. [13 GEO. 5.]
Water Order Confirmation Act, 1922. (Session 2.)

A.D. 1922. Board Provided that the Board may if they think it expedient appoint the same person to be clerk treasurer and collector.

Error in
appoint-
ment
not to
invalidate
acts of
Board.

25. No act of the Board or of any member thereof shall be invalidated or be illegal by reason of any irregularity in the appointment of any member or by reason of any person not qualified or who has ceased to be qualified acting as a member of the Board or by reason of any failure or omission to appoint a member of the Board or by reason of any other irregularity error failure or omission in or about any appointment or in or about any matter preliminary or incidental thereto.

Water
under-
takings
vested in
Board.

26. As on and from the date of transfer the water undertaking of the county council and the Western Committee and the water undertakings of the town council of Prestonpans and the town council of Cockenzie and Port Seton including in each case all waterworks then existing or in course of construction and all lands works mains pipes plant stores and other property and effects belonging to or vested in the county council or the Western Committee in the one case and the town council of Prestonpans and the town council of Cockenzie and Port Seton in the other case or in any person for or in trust for them respectively and forming part of or held in trust for the said water undertakings respectively and all outstanding accounts rates assessments balances with bankers and other balances money in any reserve depreciation or sinking fund and all other moneys and debts belonging or owing to the county council or the Western Committee in the one case and to the town council of Prestonpans and the town council of Cockenzie and Port Seton in the other case or to any person on their behalf respectively or to or in which they are entitled or interested in connection with the said water undertakings respectively and all estates and interests of the county council and the Western Committee and the town council of Prestonpans and the town council of Cockenzie and Port Seton respectively in any such property shall be and are by virtue of this Order transferred to and vested in the Board who shall thenceforth have possess and enjoy the same subject to all debts and liabilities affecting the same and to the provisions of this Order The undertakings transferred by this

A.D. 1922.

Board of the water undertakings of the town council or any part thereof to be held and maintained by the Board as part of their water undertaking on such terms and conditions as may be mutually agreed on. Such transfer shall be effected only by mutual agreement and not otherwise and in particular the arbitration clause herein contained shall in no way apply to the same :

(5) The town council shall not be entitled to supply water in bulk or otherwise to any lands and heritages within the limits of supply of the Board without the consent of the Board :

(6) If any difference should arise between the Board and the town council under the provisions of this section such difference shall be referred to the decision of an arbiter to be appointed by the Board and the town council and failing agreement as to an arbiter then of an arbiter to be appointed by the Secretary for Scotland on the application of either party.

For protection of the trustees of the Earl of Wemyss and March.

28. Notwithstanding anything in this Order contained the Board shall not during the continuance of the agreement after-mentioned be entitled to impose and levy the domestic water rate authorised by this Order on or in respect of dwelling-houses on the farms of Chesters Whitelaw Mainshill Northrig and West Bearford and also on or in respect of the Mansion House of Amisfield offices and the East and West Lodges which are entitled to a free supply under minute of agreement between the Right Honourable the Earl of Wemyss and March with consent of the Honourable Francis Charteris commonly called Lord Elcho and the local authority of the burgh of Haddington dated the twenty-seventh day of April first day of May and twenty-fourth day of October all in the year one thousand eight hundred and seventy-four and minute of homologation by the Right Honourable Hugo Richard Charteris commonly called Lord Elcho dated the eighteenth day of October one thousand eight hundred and ninety-four.

Transfer of powers to Board.

29. As from the date of transfer and subject to the other provisions of this Order all the powers rights privileges and authorities of the county council and the

section are hereinafter referred to as "the water undertakings transferred by this Order." A.D. 1922.

27. The following provisions for the protection of the provost magistrates and councillors of the burgh of Haddington (hereinafter in this section called "the town council") shall apply and have effect (that is to say) :—

For protection of town council of Haddington.

- (1) Work No. 8 shall from a point four hundred and forty yards below the centre line of the eastern dam of the reservoir at the Witches Knowe measured along the line of the said work as shown on the deposited plans down to its junction with the aqueduct Work No. 6 be a water-tight aqueduct or pipe and notwithstanding anything contained in the section of this Order of which the marginal note is "Limits of deviation" the said aqueduct or pipe shall be laid as nearly as may be at a depth not exceeding three feet below the surface of the ground or at such other depth as may be approved by the engineers of the Board and of the town council respectively :
- (2) The line of the said aqueduct or pipe (Work No. 8) shall be to the west of and wholly outwith the fields numbered forty-nine and eleven on the deposited plans both lying in the parish of Yester and in so far as the same may be situated within the field numbered forty-eight on the deposited plans the engineers for the Board shall give effect so far as practicable to such suggestions as the engineers of the town council may reasonably make as to the line upon which the same shall be laid :
- (3) The Board shall pay compensation for all damage (if any) done to the springs to which the town council have right under the feu contract between the Marquis of Tweeddale and the town council dated the twelfth and sixteenth days of February and recorded the thirteenth day of July one thousand eight hundred and ninety-four by reason of the exercise of the powers of this Order :
- (4) The Board and the town council may enter into and effect agreements for the transfer to the

Western Committee and of the town council of Preston- A.D. 1922.
pans and the town council of Cockenzie and Port Seton
shall be by virtue of this Order transferred to and vested
in the Board subject to all obligations and restrictions
so far as not repealed by this Order to which the county
council and the Western Committee and the town council
of Prestonpans and the town council of Cockenzie and
Port Seton may respectively be subject.

30. Subject to the provisions of this Order the Abolition
special water supply districts of Aberlady Gullane of water
Ormiston Meadowmill Elphinstone Gifford Garvald and districts
Prestonpans and Tranent (landward) within the western and transfer
district (hereinafter referred to as "the water districts") of water-
shall from and after the date of transfer cease to exist works.
as special water supply districts and shall cease to be
assessed for the purpose of water supply by the county
council and all the rights powers jurisdictions and autho-
rities of the county council and the Western Committee
with regard to the water supply and to the imposing
levying and collecting and recovery of water rates
charges and assessments within the water districts shall
cease and determine and all the waterworks reservoirs
lands and property and the whole water undertakings of
the water districts together with the mains pipes plant
and apparatus of and connected with the same so far
as the same are the property of the county council or
the Western Committee (hereinafter referred to as "the
water undertakings of the water districts") and all out-
standing accounts rates assessments balances moneys
funds and debts which shall at the date of transfer
belong to or be vested in or held by the county council
or the Western Committee within or connected with the
water districts together with all the powers rights privi-
leges and authorities pertaining thereto under any Act
or order or agreement decree arbitral or contract so far
as relating to the water districts shall as from and after
the date of transfer be and are by virtue of this Order
transferred to and vested in the Board and may subject
to the provisions of this Order and the Acts incorpo-
rated herewith be held exercised used and disposed of
by the Board for the purposes of this Order subject to
all debts liabilities and obligations affecting the same
and the provisions of this Order and the Acts incorpo-
rated herewith shall be applicable to the said waterworks

A.D. 1922. — and others in the same manner and to the same effect as if the said waterworks and others had been authorised by this Order.

Contracts
&c. to
remain in
force.

31. From and after the date of transfer all feu contracts feu charters dispositions covenants securities contracts agreements and obligations granted made or entered into in favour of or by or with the county council the Western Committee or the town councils or the Prestonpans Combination Water Trust or their predecessors in relation to the water undertakings transferred by this Order or in relation to the supply of water to the water districts shall subject to the provisions of this Order remain in full force and effect and shall be available to or against the Board in the same manner as the same would or might have been available to or against the county council or the Western Committee or the town councils or the Prestonpans Combination Water Trust or their predecessors as the case may be before the said date.

Actions &c.
not to abate.

32. No action suit prosecution or other proceeding commenced on or before the date of transfer by or against the county council or the Western Committee or the town councils or the Prestonpans Combination Water Trust in relation to the water undertakings transferred by this Order or in relation to the supply of water to the water districts shall abate or be discontinued or be prejudicially affected by the transfer to the Board effected by this Order but such actions suits prosecutions and other proceedings may be continued prosecuted and enforced by or against the Board as and when they might have been continued prosecuted and enforced if this Order had not been confirmed.

Byelaws
&c. to
remain in
force.

33. All byelaws rules and regulations in force at the commencement of this Order relating to the water undertakings transferred by this Order and to the water undertakings of the water districts shall continue in force until other byelaws rules and regulations are made by the Board.

Books &c.
to be
evidence.

34. All books and documents relating to the water undertakings transferred by this Order or to the water undertakings of the water districts which if this Order

had not been confirmed would have been received in A.D. 1922.
evidence shall be received in evidence as if this Order
had not been confirmed.

35. All water rates charges and assessments or any proportion thereof and all arrears thereof penalties debts and sums of money owing to the county council or the Western Committee of or relating exclusively to the water districts for the supply of water therein at the date of transfer shall be due and payable to the Board with all interest (if any) due or accruing due for the same and may (unless otherwise agreed between the Board and the county council with respect to the collection of such arrears) be recovered and enforced by the Board in like manner and as effectually as they could have been recovered and enforced by the county council or the Western Committee.

Water rates and arrears in water districts.

36. All debts and sums of money which at the date of transfer are due and owing by the county council or the Western Committee or by the town council of Prestonpans or the town council of Cockenzie and Port Seton or by the Prestonpans Combination Water Trust in relation to the water undertakings transferred by this Order or by the county council or the Western Committee in relation to the water undertakings of the water districts and whether by mortgage bond debenture annuity or otherwise shall be and are by this Order from and after the date of transfer transferred to and shall be undertaken and be payable by the Board with all interest due or accruing due thereon from time to time and may be recovered and enforced from and against the Board in like manner as they could have been recovered and enforced from and against the county council the Western Committee or the town council of Prestonpans or the town council of Cockenzie and Port Seton or the Prestonpans Combination Water Trust as the case may be. From and after the date of transfer the county council the Western Committee and the town council of Prestonpans and the town council of Cockenzie and Port Seton and the Prestonpans Combination Water Trust shall be freed and relieved by the Board of any claim or demand made by any creditor holding such security or securities and of all expenses incurred in connection therewith and the Board may

Transfer of debts.

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A.D. 1922. — apply any of their funds or the rates and charges authorised by this Order in payment of any such claim or demand.

Accounting
between
county
council &c.
and Board.

37. All sums of money in the hands or under the control of the county council the Western Committee or the town council of Prestonpans or the town council of Cockenzie and Port Seton or the Prestonpans Combination Water Trust or the treasurer or treasurers thereof respectively exclusively applicable or in part applicable to the water undertakings transferred by this Order or to the water supply of the water districts shall in whole or in part as the case may be belong to and be handed over to the Board subject to payment of any debts that may be outstanding in connection therewith (other than money owing on mortgage bond debenture or annuity) and all questions of and relating to accounting between the county council or the Western Committee or the town council of Prestonpans or the town council of Cockenzie and Port Seton or the Prestonpans Combination Water Trust and the Board for the ascertainment of the sums so due (if any) to or by the Board shall failing agreement be referred to a duly qualified accountant to be mutually appointed by the Board and the county council the Western Committee or the town council of Prestonpans or the town council of Cockenzie and Port Seton or the Prestonpans Combination Water Trust as the case may be and failing such appointment within three months after the date of transfer to an accountant to be appointed by the Secretary for Scotland on the application of either the Board the county council or the Western Committee or the town council of Prestonpans or the town council of Cockenzie and Port Seton or the Prestonpans Combination Water Trust as the case may be and the accountant so appointed shall have full right of access to the books accounts and vouchers of the county council or the Western Committee and the town council of Prestonpans and the town council of Cockenzie and Port Seton and the Prestonpans Combination Water Trust for the purpose of such accounting and shall certify the amount (if any) due to or by the Board. The amount so certified (if any) as payable to or by the Board shall be paid to or by the Board within one month after the date of

such certificate The fees payable to such accountant A.D. 1922.
shall be paid by the Board.

38. Subject to the provisions of this Order nothing in this Order contained shall prejudice or affect any mortgages bonds or assignations or other writs granted in security for money borrowed (whether repayable by instalments or otherwise) by the county council or their predecessors for and in respect of or relating exclusively to their water undertaking or to the water districts and the supply of water therefor or by the town council of Prestonpans or the town council of Cockenzie and Port Seton and subsisting at the date of transfer and the same shall during the continuance thereof be as valid and effectual in all respects as if this Order had not been confirmed Provided that the water rates and charges authorised by this Order shall be substituted for and shall come in lieu and place of the water rates assessments and charges on security of which such money was borrowed and the money borrowed as aforesaid shall have priority on the rates charges and assessments authorised by this Order over any money borrowed by the Board under the powers of this Order Provided further that if any such mortgage bond assignation or other writ granted by the county council in security for money borrowed includes any assessment leviable by the county council under the Public Health (Scotland) Act 1897 or any Act amending the same the creditor in such mortgage bond assignation or other writ shall notwithstanding the confirmation of this Order be entitled in case the Board shall make default in repayment of the debt due to such creditor to enforce his security against the said assessment and in that event the amount recovered by such creditor shall be a debt due from the Board to the county council and may be recovered in any court of competent jurisdiction.

Priority of
existing
mortgages.

39. Nothing in this Order shall prejudice or affect anything before the date of transfer done or suffered in relation to the water undertakings transferred by this Order or to the water undertakings of the water districts nor any right liability claim or demand incident to or consequent on anything so done or suffered.

Proceedings
saved.

40. Until the date of transfer the county council and the Western Committee and the town councils in

Mainten-
ance of
under-

[Ch. v.] *East Lothian (Western District)* [13 Geo. 5.]
Water Order Confirmation Act, 1922. (Session 2.)

A.D. 1922. respect of the water undertakings transferred by this Order and the county council and the Western Committee in respect of the water undertakings of the water districts shall carry on those respective undertakings as heretofore in the ordinary course of business but on and after the commencement of this Order those bodies shall not without the previous consent of the Board under the hand of their clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the construction completion renewal and maintenance of the works and the proper conduct of the respective undertakings and any expenditure properly made or incurred by the county council the Western Committee or the town councils in connection with the water undertakings transferred by this Order or the water undertakings of the water districts otherwise than out of moneys borrowed on or arising from the undertakings shall be repaid by the Board.

takings
until
transfer.

Cancellation of Elphinstone agreements.

41. The agreement between Henry Callander esquire of Prestonhall on the one part and the Western Committee on the other part dated the fifteenth sixteenth and twenty-first days of February and registered in the books of the Lords of Council and Session the fifth day of March all in the year one thousand eight hundred and ninety-eight and the agreement between the Commissioners of the burgh of Tranent in the county of East Lothian of the first part and the Western Committee of the second part dated the twentieth day of December in the year one thousand eight hundred and ninety-seven and the fourteenth day of January in the year one thousand eight hundred and ninety-eight and registered in the books of the Lords of Council and Session the nineteenth day of January in the year one thousand eight hundred and ninety-eight relating to the supply of water to the special water supply district of Elphinstone shall come to an end as from the date of transfer.

For protection of Lt.-Col. John Patrick Nisbet

42. The following provisions for the protection of Lieutenant-Colonel John Patrick Nisbet Hamilton Grant of Belhaven and Dirleton and his successors in the estate of Dirleton (hereinafter in this section called "the proprietor") shall unless otherwise agreed upon

in writing between the proprietor and the Board apply A.D. 1922.
and have effect (that is to say):—

Hamilton
Grant of
Belhaven
and
Dirleton.

(1) No lands or heritages on the estate of Dirleton in the parish of Dirleton within the limits of supply which are or shall be supplied with water by the provost magistrates and councillors of the burgh of North Berwick shall be liable to be assessed for the domestic water rate authorised by this Order until such lands and heritages are being supplied with water by the Board and are no longer paying the said provost magistrates and councillors of the burgh of North Berwick for or in respect of a supply afforded by them to the said lands and heritages :

(2) So soon as the Board extend their mains to supply the said lands and heritages and notwithstanding anything in this Order contained the rates and charges for the supply of water for domestic purposes to be imposed and levied for any year by the Board under the provisions of this Order upon or in respect of any existing feus and long leaseholds on the estate of Dirleton supplied with water at the commencement of this Order by the town council of North Berwick shall not exceed the rate for water supply leviable for such year within the burgh of North Berwick. The Board shall consent to the provost magistrates and councillors of the burgh of North Berwick supplying water to any lands and heritages within the limits of supply belonging to the proprietor until their mains are extended as aforesaid :

(3) In respect that the proprietor or his predecessors in the said estate of Dirleton have paid for the laying of certain water mains for the supply of existing and future feus and long leaseholds from the estate of Dirleton and other subjects on the said estate the Board shall be bound in the event of their using the said mains for the supply of water to any place or places or premises other than the existing feus and long leaseholds and other subjects on the said estate of Dirleton supplied with water by the town council of North Berwick at the commencement

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of this Order as aforesaid to repay the proprietor from time to time a fair proportion applicable to the place or places or premises so supplied of the cost of these mains as such cost and proportion thereof shall failing agreement be settled by the arbiter to be appointed as aftermentioned :

- (4) The Board shall after the date when said lands and heritages are supplied by them in all time thereafter maintain in good order and repair the said mains and shall from time to time extend the said mains as such extension shall become necessary for supplying with water feus and long leaseholds to be thereafter granted on the said estate of Dirleton :
- (5) If any difference shall arise between the Board and the proprietor under this section the same shall be referred to an arbiter to be appointed by the Board and the proprietor or failing agreement between them by the Secretary for Scotland on the application of either party.

As to supply
by town
council of
North
Berwick.

43. The following provisions shall unless otherwise agreed on in writing between the provost magistrates and councillors of the burgh of North Berwick (in this section referred to as " the town council ") and the Board apply and have effect (that is to say) :—

- (1) The town council shall in all time give to the Board from the present main pipe from the Donolly Reservoir on the Papan Water to North Berwick such a quantity of water in bulk as the Board may require not exceeding twenty thousand gallons during each day of twenty-four hours for the purpose of enabling the Board to supply water to the village and community of Garvald in the county of East Lothian :
- (2) The price for all water to be supplied under the provisions of the immediately preceding subsection shall be at the rate of sixpence per one thousand gallons :
- (3) The quantity of water to be delivered to the Board under the provisions of this section shall be ascertained by a meter to be fitted up and kept in proper repair by the town council who shall have the sole control of the said meter

but the Board or any person representing them shall be entitled to all reasonable facilities for checking and verifying the readings of the said meter : A.D. 1922.

- (4) The sum payable by the Board for water supplied under the provisions of this section shall be paid to the town council on the first day of November in each year :
- (5) Subject to the provisions of this section the town council shall not be entitled to supply water in bulk or otherwise to any lands or heritages within the limits of supply without the consent of the Board except to such lands and heritages as are supplied with water by the town council at the commencement of this Order :
- (6) The town council may enter into and effect agreements with the Board for additional water supplies by the town council to the Board for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed on :
- (7) If any difference shall arise between the Board and the town council under this section such difference shall be referred to the decision of an arbiter to be appointed by the Board and the town council and failing agreement as to an arbiter then of an arbiter to be appointed by the Secretary for Scotland on the application of either party :
- (8) The above provisions shall come in lieu and place of the provisions contained in a minute of agreement between the Police Commissioners of the burgh of North Berwick as the local authority in the said burgh and the parochial board of the parish of North Berwick as the local authority in the landward part of the said parish under the Public Health (Scotland) Act 1867 on the one part and Walter Wingate Gray esquire of Nunraw near Garvald for and on behalf of the community of the village of Garvald on the other part dated the sixteenth day of April the tenth and nineteenth days of October in the year one thousand

A.D. 1922.

eight hundred and eighty-five and the said agreement shall come to an end at the date of the commencement of this Order :

- (9) The Board shall not levy the domestic water rate by this Order authorised to be levied upon any lands and heritages in the parish of Dirleton supplied with water by the town council at the commencement of this Order so long as the town council continue to give such supply.

For protec-
tion of
Henry
Callander
and town
council of
Tranent.

44. The following provisions shall unless otherwise agreed on in writing between Henry Callander esquire of Prestonhall in the county of Midlothian or his successors in estate and the provost magistrates and councillors of the burgh of Tranent on the one part (in this section referred to as "the first party") and the Board on the other part (in this section referred to as "the second party") apply and have effect (that is to say) :—

- (1) Notwithstanding anything in this Order contained no domestic water rate shall be imposed or levied on the farm-house farm-steading or farm-cottages at present erected or that may be erected on the farms of North Elphinstone South Elphinstone and Buxley belonging to the said Henry Callander and situated in the parish of Tranent and county of East Lothian (which subjects are hereinafter referred to as "the exempted subjects") excepting always however the farm-cottages within the village of Elphinstone in the said parish of Tranent :

- (2) The town council of Tranent shall notwithstanding anything in this Order contained be entitled to give a supply of water to the exempted subjects and for or towards this purpose shall have the use of the existing two-and-a-half inch cast iron pipe leading from the main pipe on the Tranent and Ormiston Road to Strawberry Lane Elphinstone without any payment to the second party therefor The rights of the second party in and to the said two-and-a-half inch pipe between the places mentioned shall be and are hereby accordingly transferred to the first party The first party shall give up any interest or right in the said two-and-a-half inch pipe through the village of Elphinstone west of Strawberry Lane :

- (3) Until such time as the second party lay a new pipe for the purpose of supplying the village of Elphinstone and other subjects within their area to take the place of the two-and-a-half inch pipe transferred by this section to the first party the second party shall be entitled to use the said two-and-a-half inch pipe throughout its whole length provided and so long as they afford to the said farms of North and South Elphinstone a free supply of water. A.D. 1922.

45. The following provisions shall unless otherwise agreed in writing between the provost magistrates and councillors of the burgh of Tranent (hereinafter in this section referred to as "the town council") and the Board apply and have effect (that is to say):— As to supply by town council of Tranent.

- (1) Subject to the provisions of this Order the agreement between the commissioners of the burgh of Tranent in the county of East Lothian of the first part and the Western Committee of the second part dated the fourth and sixth and registered in the books of the Lords of Council and Session twenty-third all days of February in the year one thousand eight hundred and ninety-five relating to the supply of water to the special water supply district of Meadowmill shall notwithstanding the abolition of the said special water district remain in full force and effect with this modification that the village of Meadowmill shall be substituted for the said special water supply district and that either the town council or the Board may terminate the said agreement after the term of Whitsunday one thousand nine hundred and twenty-eight on giving three months' previous notice in writing:

- (2) The town council shall for a period of eight years from the term of Whitsunday one thousand nine hundred and twenty give to the Board a supply of water from the present main pipe of the town council passing through the village of Ormiston such a quantity of water in bulk as the Board may require for the purpose of enabling them to supply water to the village of Ormiston and to any houses erected or to be erected at Ormiston:

A.D. 1922.

- (3) The price for all water to be supplied to the Board for Ormiston shall be at the rate of sevenpence halfpenny per one thousand gallons :
- (4) The town council if requested by the Board shall give a supply of water to the Board to enable the Board to supply Bankhead House and Dolphinstone farm house and steading and farm cottages all in the parish of Tranent at the rate of sevenpence halfpenny per one thousand gallons and for such period as may be agreed on when the supply is taken :
- (5) Subject to the provisions of this section the agreement between the town council and the Western Committee dated the sixth and twenty-second and registered in the books of the Lords of Council and Session the twenty-seventh all days of October in the year one thousand nine hundred and nine relating to the supply of the Ormiston special water supply district shall mutatis mutandis apply to the supply to be furnished by the town council to the Board under subsection (2) of this section :
- (6) Subject to the provisions of this Order the town council shall not be entitled to supply water in bulk or otherwise to any lands or heritages within the limits of supply without the consent of the Board except to such lands and heritages as are supplied with water by the town council at the commencement of this Order :
- (7) The town council may enter into and effect agreements with the Board for additional water supplies by the town council to the Board for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed on :
- (8) If any difference shall arise between the Board and the town council under this section such difference shall be referred to the decision of an arbiter to be appointed by the Board and the town council and failing agreement as to an arbiter then of an arbiter to be appointed by the Secretary for Scotland on the application of either party.

46. From and after the date of transfer the Board shall carry on the water undertakings transferred by this Order and the water undertakings of the water districts and maintain manage and work the existing waterworks forming parts of those undertakings and by means thereof and of the waterworks authorised by this Order supply water within the limits of supply in accordance with and subject to the provisions of this Order.

A.D. 1922.

Board to
carry on
under-
takings and
supply
water.

47. The Board may subject to the provisions of this Order make and maintain in the lines and according to the levels shown on the deposited plans and sections the waterworks hereinafter described The waterworks hereinbefore referred to and authorised by this Order will be situate in the county of East Lothian and are :—

Power to
make
works.

Work No. 1 A reservoir (Hopes) wholly situate in the parish of Garvald and Bara commencing at and to be formed by a dam across the stream called Hopes Water at a point on that stream one hundred and twenty yards or thereabouts measured in a north-easterly direction from the junction of the stream called Shearnie Cleugh with Hopes Water such dam commencing at a point one hundred and twenty yards or thereabouts measured in a south-easterly direction and terminating at a point eighty yards or thereabouts measured in a north-westerly direction from the point hereinbefore described where the said dam crosses Hopes Water;

Work No. 2 An aqueduct conduit or line or lines of pipes wholly situate in the parish of Garvald and Bara commencing at a point in Hopes Water one hundred yards or thereabouts measured in a south-westerly direction and terminating at a point in the said stream one hundred and forty yards or thereabouts measured in a south-easterly direction from the point hereinbefore described where the dam of Work No. 1 crosses the said stream;

Work No. 3 An aqueduct conduit or line or lines of pipes wholly situate in the parish of Garvald and Bara commencing in the reservoir Work No. 1 at the north-western end of the dam of Work No. 1 hereinbefore described and terminating in Hopes Water at a point in the said stream one hundred and forty yards or thereabouts measured in a

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south-easterly direction from the point hereinbefore described where the dam of Work No. 1 crosses the said stream;

Work No. 4 An aqueduct conduit catchwater or line or lines of pipes wholly situate in the parish of Garvald and Bara commencing at a point on the stream called Fall Burn four hundred and eighty yards or thereabouts measured in a south-easterly direction from the south-eastern corner of the most southern building at the farm-steading called West Hopes and terminating in the reservoir Work No. 1 at or near the south-eastern end of the dam of Work No. 1 hereinbefore described;

Work No. 5 An aqueduct conduit catchwater or line or lines of pipes wholly situate in the parish of Garvald and Bara commencing by a junction with Work No. 2 hereinbefore described near the point of termination of the said work and terminating at or near the junction of Fall Burn with Hopes Water;

Work No. 6 An aqueduct conduit or line or lines of pipes situate in the parishes of Garvald and Bara and Yester and in the burgh and parish of Haddington commencing by a junction with Work No. 5 at the point of termination of the said work hereinbefore described and terminating in an intended service reservoir Work No. 9 hereinafter described at a point one hundred and ninety yards or thereabouts measured in a north-westerly direction from the north-western corner of the building called Black Mains Smithy and thirty-five yards measured in a south-westerly direction from the centre of the adjoining highway between Haddington and Aberlady;

Work No. 7 A carriageway wholly situate in the parish of Garvald and Bara commencing by a junction with the existing public road from Yester to Hopes at a point thirty-five yards or thereabouts measured in a south-westerly direction from the south-west corner of the building called East Hopes and terminating at the north-western end of the dam of Work No. 1 hereinbefore described;

Work No. 8 An aqueduct conduit catchwater or line or lines of pipes wholly situate in the parish

of Yester commencing at the existing outlet of the Lammer Loch reservoir of the Prestonpans Combination Water Trust and terminating by a junction with Work No. 6 hereinbefore described at or near the existing water-house of the town council of Haddington situate a short distance to the north of Pishwanton Wood; A.D. 1922.

Work No. 9 A reservoir (Garleton Hills Service Reservoir) wholly situate in the parish of Haddington circular in shape and about fifty yards in diameter to be formed by a dam one hundred and fifty yards or thereabouts in length the centre of the said reservoir being situate at or near the point of termination of Work No. 6 hereinbefore described;

Work No. 10 An aqueduct conduit or line or lines of pipes situate in the parishes of Haddington and Aberlady commencing in the intended Garleton Hills Service Reservoir Work No. 9 at or near the point of termination of Work No. 6 hereinbefore described and terminating by a junction with the existing pipe of the Western Committee at the point near Ballencrieff where the road between Haddington and Aberlady intersects with the road between Longniddry and Drem;

Work No. 11 An aqueduct conduit or line or lines of pipes situate in the parishes of Gladsmuir Tranent and Pencaitland and the burgh of Tranent commencing near Penston in the existing service reservoir belonging to the Western Committee and terminating near Tranent Mains in the existing service reservoir of the Prestonpans Combination Water Trust.

48. In addition to the waterworks by this Order authorised and in connection therewith the Board may upon or in the lands delineated on the deposited plans and described in the deposited books of reference or upon or in any other lands acquired for the purposes of this Order make erect and maintain all such embankments dams weirs intake weirs by-wash channels bridges roads tramroads accesses approaches wells tanks gauges filters filter beds sluices outlets adits drains aqueducts catchwaters culverts channels cuts mains pipes engines machinery buildings telegraphs telephones posts wires Power to make subsidiary works.

A.D. 1922. and other works and conveniences as may be necessary or convenient in connection with or subsidiary to the waterworks or any of them or necessary for conducting distributing inspecting maintaining repairing cleansing managing and using the same but nothing in this section or the immediately preceding section shall exonerate the Board from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. Provided that any telegraphs telephones posts wires and other works made erected or maintained by the Board under this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

**Limits of
deviation.**

49.—(1) In the construction of the works by this Order authorised the Board may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where on any street or road no such limits are shown the boundaries of such street or road shall be deemed to be such limits) and they may also deviate from the levels shown on the deposited sections to any extent upwards not exceeding five feet in the case of the reservoirs (Works Nos. 1 and 9) and thirty feet in the case of the remaining works and in all cases to any extent downwards.

(2) Provided that—

(a) The Board shall not construct any embankment or dam of the reservoirs (Works Nos. 1 and 9) of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or dam and five feet in addition ;

(b) Except for the purpose of crossing over a stream canal or railway no part of the aqueducts shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

**Power to
open roads
&c.**

50. For the purposes and during the execution of the several works which the Board are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Board may temporarily from time to time break up or cross over or under alter or stop up any streets highways roads

lanes paths bridges passages sewers drains watercourses gas and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited books of reference which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway street road lane path bridge or passage or the flow of water gas sewage or electricity or telephonic communication in any such sewer drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to or authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

51. Subject to the provisions of this Order the Board may by means of the works by this Order authorised or some of them or some part or parts thereof divert impound take appropriate store use and distribute the waters of the streams called Hopes Water Fall Burn Long Grain Shearnie Cleugh Wester Shearnie Cleugh Redden Grain White Sled Burn Rogers Cleugh Harley Grain Long Cleugh Thorter Cleugh and Sting Bank Burn and all affluents streams springs and waters flowing into or rising within the said streams and of any other streams brooks or waters which may be found in upon or under or which may be diverted or intercepted by the works authorised by this Order and the Board may by means of the works authorised by this Order and the waterworks transferred to the Board by this Order or some of them supply water within the limits of supply and to such persons and places beyond the same as the Board are authorised by this Order to supply with water.

52. The Board may from time to time subject to the provisions of this Order lay down maintain use extend alter renew relay replace enlarge and increase the number

A.D. 1922.

Power to
take water.

Board may
enlarge or
increase
works.

[Ch. v.] *East Lothian (Western District)* [13 GEG. 5.]
Water Order Confirmation Act, 1922. Session 2.

A.D. 1922. and size of the works (other than reservoirs) mains pipes filters filter beds tanks channels and other works and conveniences from time to time in use or required for filtering storing conveying and distributing water for the purposes of their undertaking Provided always that such extension enlargement or increase shall be executed only on lands or property belonging to the Board or which may be acquired by them by agreement or in any roads or streets which they may by the Waterworks Clauses Acts 1847 and 1863 and this Order be authorised to open and break up.

Laying
mains on
public roads.

53. The Board may subject to the consent of the road authority at any time for the purposes of distributing and supplying water beyond the limits of supply lay down make maintain and use aqueducts conduits or lines of pipes through over under along across or into any public road or highway and renew alter enlarge duplicate and increase the number and size thereof or extend the same and stop up temporarily any such public road or highway for such purposes providing when possible a proper temporary substitute to the reasonable satisfaction of the road authority before interrupting the traffic on any such road and making full compensation to all persons injuriously affected by anything done under the provisions of this section Provided that nothing in this section shall prejudice extend or affect the powers and provisions of this Order with respect to the works authorised by this Order.

Board to
have
powers of
a local
authority
for laying
mains.

54. The Board shall within the limits of supply have and may exercise for the purpose of laying water mains and pipes other than the works described in the section of this Order whereof the marginal note is "Power to make works" elsewhere than in any public road or street all the powers of a local authority under the Public Health (Scotland) Act 1897 with respect to the laying of water mains and pipes inside the district of such local authority.

Power to
lay mains
outside
water
limits.

55. The Board shall have and may exercise in relation to the carrying of water mains and pipes without their limits of supply for the purpose of affording a supply of water within those limits the like powers subject to the like restrictions (including the liability to make compensation for damage caused by the exercise of such powers)

as are conferred and imposed on a local authority by the Public Health (Scotland) Act 1897 in relation to the carrying of sewers without the district of the local authority. Provided that in exercising the powers conferred by this section the Board shall be subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets except section 29 of that Act and that for the protection of railways and canals and any bridge tunnel or other work in connection therewith section 107 of the Public Health (Scotland) Act 1897 shall apply.

A.D. 1922.

56. Subject to the provisions of the section of this Order of which the marginal note is "Period for completion of works" the Board shall complete the Hopes Reservoir within a period of five years after the commencement of the construction thereof. Any question as to the date when such construction was commenced shall be determined by the Secretary for Scotland.

Provision
for con-
struction
of Hopes
Reservoir.

57.—(1) During the period from the commencement of this Order to the date when the Board commence to fill the Hopes Reservoir or to the expiration of a period of twenty years from the commencement of this Order whichever shall first occur the Board may for the purposes of this Order take from the Fall Burn and the Hopes Water any water that they may require subject to the following restrictions and conditions:—

As to com-
pensation
water.

- (a) The point of abstraction shall not be lower than fifty yards below the junction of Fall Burn and Hopes Water as shown on the deposited plans;
- (b) The Board shall not take during any day of twenty-four hours a greater quantity of water than the immediate needs of the consumers reasonably require and they shall place and maintain at or near the point of abstraction a suitable meter for measuring water taken by them;
- (c) The Board shall not take any water from the Fall Burn and the Hopes Water during any time when the flow of water immediately below the point of abstraction is less than at the rate of one hundred thousand gallons per twenty-four hours and they shall place and maintain a measuring gauge immediately below the point of abstraction over or through which all water

A.D. 1922.

in the said stream other than the water taken by the Board shall be allowed to flow and such gauge shall be so constructed that no water can be taken by the Board when the flow of water in the stream is less than at the rate aforesaid but during such time as the flow is in excess of such rate the Board may take all or such part of the excess as they may require not exceeding in the aggregate one hundred and forty-six million gallons in any one year nor six hundred thousand gallons in any day of twenty-four hours;

- (d) The Board shall pay (1) to Messieurs Montgomerie and Company Limited millers and maltsters Haddington the sum of eight hundred pounds sterling and (2) to Mrs. Susan Georgiana Fergusson or Baird of Colstoun East Lothian widow of John George Alexander Baird esquire of Muirkirk Ayrshire and Colstoun aforesaid and Mrs. Edith Christian Broun Baird or Lindsay of Muirkirk Ayrshire wife of George Humphrey ~~Maurice Lindsay~~ major late of the King's Own Scottish Borderers as the proprietors for their respective rights and interests of the estate of Colstoun the sum of two hundred and fifty pounds sterling which sums shall be at the absolute disposal of the said Messieurs Montgomerie and Company Limited and the said Mrs. Susan Georgiana Fergusson or Baird and Mrs. Edith Christian Broun Baird or Lindsay the Board not being entitled or bound to see to the application thereof. The receipt of either of the said Mrs. Susan Georgiana Fergusson or Baird or Mrs. Edith Christian Broun Baird or Lindsay or the proprietor of Colstoun for the time being shall be a sufficient and full discharge to the Board.

- (2) On and after the date when the Board commence to fill the Hopes Reservoir they may collect divert and impound in that reservoir and may take use and appropriate for the purposes of their water undertaking all the waters of the Hopes Water and its tributaries as shown upon the deposited plans and all such other springs and waters within the drainage area of the Hopes Water as will or can be intercepted by the works by this Order

authorised subject to the following conditions and A.D. 1922.
restrictions :—

(a) The Board shall erect and maintain at a point on the Hopes Water not more than two hundred yards from the foot of the dam of the Hopes Reservoir a proper and suitable measuring gauge with a proper recording instrument fitted thereto ;

(b) During the period of the first filling of the reservoir the Board shall not impound in the reservoir any such waters as aforesaid during any time when the flow of water from or through the said gauge is less than at the rate of three hundred thousand gallons per twenty-four hours ;

(c) After the first filling of the reservoir the Board shall during every day of twenty-four hours discharge into the Hopes Water over or through the said gauge and in a regular uniform and continuous flow not less than three hundred thousand gallons of water.

(3) In case of any neglect on the part of the Board to maintain any gauge weir measuring gauge meter or recording instrument in a state of efficiency and in case of any other neglect by or in consequence of which the quantity of water referred to in subsection (1) (c) of this section and the quantity of compensation water referred to in subsection (2) (c) of this section shall not so flow the Board shall for every day on which such neglect occurs forfeit and pay to each of the persons affected thereby (who may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them.

(4) If any difference arises between the Board and any person so interested with respect to the construction or use of any gauge weir measuring gauge meter or recording instrument or the state of repair or condition thereof or as to the quantities of water such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the sheriff.

(5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water of the Fall Burn and the Hopes Water

A.D. 1922. — which may be abstracted by the Board under the powers of this Order and for all water which may be led into the Hopes Water by the works by this Order authorised.

Power to take lands. 58. Subject to the provisions and for the purposes of this Order the Board may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited books of reference.

Power to grant servitudes &c. by agreement. 59. Persons empowered by the Lands Clauses Acts to sell and convey or dispose of lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Board any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and annual feu-duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to acquire lands by agreement. 60. In addition to the lands authorised to be taken by compulsion as aforesaid the Board may from time to time purchase for the purposes of this Order and of their water undertaking by agreement lands not exceeding in the whole ten acres but nothing in this Order shall exonerate the Board from any action interdict or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land purchased under the powers of this section.

Power to acquire servitudes only for lines of pipes. 61. The Board may in lieu of acquiring any lands for the purpose of the conduits or lines of pipes by this Order authorised where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for the purpose of making maintaining cleansing and repairing the same and may give notice to treat in respect of such servitudes and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners) shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts :

Provided that nothing herein contained shall authorise the Board to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this proviso :

A.D. 1922.

Provided also that as regards any lands in respect of which the Board have acquired servitudes only under the provisions of this section the Board shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes at all times have the same rights to use and cultivate the said lands as if this Order had not been confirmed.

62. The Board shall not sink any well upon or construct any works for taking or intercepting water from any lands acquired by them unless the works and the lands upon which the same are to be constructed are specified in this Order or in an Act of Parliament or Order confirmed by Parliament.

Limiting
powers of
Board to
abstract
water.

63.—(1) The Board may hold any lands transferred to or acquired by them under this Order and may also by agreement purchase acquire and hold any lands or take servitudes or restrictions over any lands which may in their opinion be necessary or desirable for the purpose of securing the purity of the water in the drainage area of the waterworks of the Board and of protecting their water supply against pollution nuisance encroachment or injury and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts.

Power to
acquire
and hold
lands for
prevention
of pollution.

(2) The Board may let for such period as they think fit or sell or feu any land acquired under this section on such terms conditions and restrictions as regards its use as to the Board may seem fit and to secure that such land shall not be manured or broken up for tillage and that no buildings which may prejudicially affect the water supply or the purity of the water shall be erected thereon The proceeds of the sale of any lands by the Board shall only be applied to the purposes of this Order to which capital is properly applicable.

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(3) Nothing in this Order shall exonerate the Board from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any lands acquired under the powers of this section and the Board shall not erect or permit the erection of any buildings on such lands except such as are required in connection with their water undertaking or for farm buildings.

For protection of reservoirs &c. from pollution.

64. The Board may on any lands which they may acquire under the powers of this Order or otherwise construct all such drains channels and other works as they may think necessary or desirable for preventing sewage or polluting liquids or contaminated or impure water from entering or polluting any of the reservoirs conduits or watercourses of the Board or any waters flowing into the same.

Power to sell &c. lands.

65. Notwithstanding anything to the contrary contained in the Lands Clauses Consolidation (Scotland) Act 1845 the Board may retain and hold and from time to time sell feu lease or otherwise dispose of for such consideration and on such terms and conditions as they may think fit any lands acquired by them under the powers of this Order and in their judgment not required or not immediately required for the purposes of their undertaking Moneys received from the sale of lands under this section shall be applied to purposes in connection with the undertaking of the Board to which capital is properly applicable.

Reservation of water rights &c. on sale.

66. Subject to the provisions of the section of this Order whereof the marginal note is "Limiting powers of Board to abstract water" the Board on selling any lands acquired for or in connection with the purposes of this Order and not required to be retained for those purposes may reserve to themselves all or any part of the water rights belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter or otherwise as they may think fit.

67. The Board may make and carry into effect agreements with the owner lessee or occupier of any lands within the drainage area of any reservoir or work belonging to the Board with reference to the execution by the Board or such owner lessee or occupier of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into such reservoirs and works.

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 Power to agree as to drainage of lands.

68. The Board may for the protection of the waterworks of the Board from injury by subsidence or otherwise by agreement purchase acquire and hold any mines or minerals under any lands for the time being vested in the Board for the purposes of the undertaking of the Board or servitudes or wayleaves in or through which are vested in the Board for such purposes or in on or through which any works of the Board are for the time being situate or pass or under any land adjoining any such lands respectively.

Acquisition of minerals by agreement.

69. The Board may at any time for the purpose of constructing repairing examining emptying or cleansing any of the waterworks of the Board cause the water in any such work to be temporarily discharged into any available drain stream or watercourse.

Power to discharge water temporarily into streams.

In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

70. The powers of the Board for the compulsory purchase of lands for the works authorised by this Order shall cease after the expiration of six years from the commencement of this Order.

Period for purchase of lands.

71. If the works authorised to be constructed by this Order other than Works Nos. 1 2 3 4 5 and 7 are not completed within ten years from the commencement of this Order and if Works Nos. 1 2 3 4 5 and 7 are not completed within twenty years from the commencement

Period for completion of works.

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A.D. 1922. — of this Order then on the expiration of those periods respectively the powers by this Order granted to the Board for executing any work not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Board from maintaining using extending enlarging altering replacing relaying increasing adding to or removing any of their conduits aqueducts mains or pipes at any time and from time to time as occasion requires for the purpose of supplying water under this Order.

Constant
supply and
pressure.

72. The water to be supplied from any main or pipe of the Board need not be constantly laid on under pressure nor be supplied in any case at a level higher or at a pressure greater than can be supplied or afforded by gravitation from the existing reservoir or tank or the reservoir or tank by this Order authorised from which the supply is taken.

Supply of
water for
domestic
use within
limits of
supply.

73. The Board may so far as not already laid cause pipes to be laid and water to be brought through all streets and roads or portions of streets or roads within the limits of supply and shall at the request of the owner or occupier of any house or part of a house occupied as a separate dwelling situated within the said limits or any person entitled to demand a supply of water under the provisions herein contained furnish to such person by means of service or communication pipes and other necessary and proper apparatus to be provided laid down and maintained by and at the cost of such person unless otherwise agreed between him and the Board a sufficient supply of water for domestic purposes in any such house or dwelling (including a supply for private water-closets and private fixed baths in any such dwelling-house) including the office-houses yards and other pertinents of the same Provided that no person shall be entitled to demand such supply of water or to require the Board to lay down pipes or fire plugs unless some pipe of the Board shall have been laid within one hundred yards of the premises in respect of which such supply of water or pipes or fire plugs are demanded or in the case of tenements situated in a private close or place unless a water pipe of the Board shall have been laid within one hundred yards of the entrance to such close or place or unless the Board shall have become

bound by virtue of a requisition and agreement made and executed in the manner and to the extent required by the Waterworks Clauses Act 1847 to cause pipes to be laid down within the said distance of one hundred yards of such premises. A.D. 1922.

74. Nothing in this Order contained shall prejudice or affect the agreement between the Western Committee the Commissioners for executing the office of Lord High Admiral of the United Kingdom of Great Britain and Ireland and the South Eastern Counties of Scotland Joint Sanatorium Board relative to the supply of water to East Fortune Sanatorium and the Board shall supply water to that sanatorium upon the terms set out in that agreement. Saving for East Fortune Sanatorium.

75. The following provisions for the protection of Saint Cuthbert's Co-operative Association Limited and their successors (in this section referred to as "the association") shall unless otherwise agreed upon in writing between the association and the Board apply and have effect (that is to say):— For protection of Saint Cuthbert's Co-operative Association Limited.

- (1) Nothing in this Order shall alter or affect the reservations burdens conditions and provisions and whole other subsisting obligations undertaken by the county council specified in (1) an Order dated twenty-first day of August one thousand nine hundred and one of the Local Government Board for Scotland granted to the county council under the Public Health (Scotland) Act 1897 and (2) an Order dated first day of June one thousand nine hundred and ten of the said Local Government Board granted to the county council under the said Public Health (Scotland) Act 1897 or (3) in any of the following conveyances granted by William Drummond Ogilvy Hay Newton of Newton in the county of Haddington (now East Lothian) as heir of entail therein mentioned with consent as therein mentioned in favour of the county council videlicet (a) Conveyance dated eighteenth and twenty-third and recorded in the division of the General Register of Sasines applicable to the county of Haddington (now East Lothian) on twenty-eighth all days of July one thousand nine hundred and six (b) Conveyance dated

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second and twenty-sixth both days of November and recorded in the said division of the General Register of Sasines on fourteenth day of December all in the year one thousand nine hundred and eight and (c) Conveyance dated second day of August and twenty-fifth day of September and recorded in the said division of the General Register of Sasines on second day of October all in the year one thousand nine hundred and eleven and the said conveyances shall be read and construed in the same way and to the same effect as if the Board had been parties thereto instead of the county council :

- (2) The Board shall be bound to make good to the association all loss or damage whether to farm stock or otherwise which may be caused by or arise from (a) the operations in laying examining renewing or altering the water pipes which it is now proposed to place on the association's property and (b) the leakage or bursting of the said pipes :
- (3) The Board shall not acquire any land from the association under and in terms of this Order but only a servitude or wayleave for the laying maintaining and renewal of the main pipe (Work No. 8) :
- (4) In the event of any of the said operations materially interfering with the well or spring which now supplies the Latch Cottage or with the supply of water in the Latch Loch or with the flow of water in the Back Burn the Board shall be bound to provide free of charge a reasonably sufficient supply of water at such point or points as failing agreement may be determined by the arbiter after mentioned for the use of the Latch Cottage and for the watering of stock on the ground in which the Latch Loch is situated or through which the Back Burn flows—all necessary pipes and connections shall be provided and maintained by and at the expense of the Board :
- (5) Notwithstanding anything in this Order contained the Board shall not impose and levy the domestic water rate on any of the subjects which are entitled to a free supply under the before mentioned Orders and conveyances so long as the

supply of water thereto by the Board shall not exceed two thousand five hundred gallons per day to which the Association and Mrs. Mary Ann Mackenzie Newton Hall Gifford the proprietrix of Newtonhall Mansion House are entitled under the said Orders and conveyances as the successors of the said William Drummond Ogilvy Hay Newton And in particular the Board shall not impose and levy domestic water rate in respect of Newtonhall Mansion House unless the said Mrs. Mary Ann Mackenzie or her successors shall have taken from the Board water for the said mansion house in excess of five hundred gallons per day being the proportion of the said two thousand five hundred gallons per day to which she is entitled as proprietrix aforesaid Further the Board shall not impose and levy a domestic water rate on any subjects to which the Board are providing a free supply under and in virtue of subsection (4) of this section In the event of a supply of water in excess of two thousand five hundred gallons a day being required and taken by the association and the proprietor of Newtonhall or either of them from the Board they shall be entitled to set off against the amount of the domestic water rate which shall then become leviable in respect of the said subjects and in such proportions as they may mutually decide an annual sum of fifteen pounds in consideration of the right to demand the said quantity of two thousand five hundred gallons a day It is agreed that this sum of fifteen pounds is fixed in relation to an estimated domestic water rate of two shillings and sixpence per pound and will increase or decrease according and in proportion as the domestic water rate leviable by the Board for the time being within the limits of supply is greater or less than the said estimated rate of two shillings and sixpence per pound Any domestic water rate levied under subsection (4) of the section of this Order of which the marginal note is " Estimate to be considered and domestic water rate imposed " shall not be taken into consideration :

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- (6) If any difference shall arise between the Board and the association under this section the same shall be referred to an arbiter to be appointed failing agreement by the Secretary for Scotland on the application of either party.

Saving for
Wanside
and
Stobshiel.

76. Nothing in this Order shall alter or affect the reservations burdens conditions and provisions and whole other subsisting obligations undertaken by the county council specified in feu disposition by Christopher Charles Nisbet of Stobshiel in favour of the county council of the county of Haddington (now East Lothian) dated sixth December one thousand nine hundred and ten and registered in the division of the General Register of Sasines applicable to the county of Haddington (now East Lothian) and in the books of Council and Session on the eleventh day of November one thousand nine hundred and eleven and the said feu disposition shall be read and construed in the same way and to the same effect as if the Board had been parties thereto instead of the county council.

For protec-
tion of
county
council of
East
Lothian.

77. In the execution of the works and the exercise of the powers by this Order authorised and conferred so far as they affect highways of the county of East Lothian the following provisions for the protection of the county council shall (except so far as otherwise agreed in writing between the Board and the county council) have effect (that is to say):—

- (1) All aqueducts conduits or lines of pipes to be laid in or along any county highway or in upon or across any county bridge shall as far as practicable be laid in such position in or at the side thereof as the county council in writing under the hand of their surveyor for the district may reasonably direct:
- (2) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall extend and apply to all county highways and county bridges opened and broken up or interfered with by the Board in the exercise of the powers of this Order Provided that the notice required by section 30 of that Act shall not be less than seven days instead of three days:

- (3) The plan required by section 31 of the last-mentioned Act shall be accompanied by a section of the proposed works and a short specification thereof and shall be delivered to the county council or their surveyor by the Board not less than in case of a county bridge one month and in all other cases fourteen days before they commence to break or open up any county highway or interfere with any county bridge for the purpose of executing the works : A.D. 1922.
- (4) No greater length than one hundred and fifty yards of any county highway shall be broken up at any one place at one time without the consent of the county council. A clear and sufficient carriageway shall if practicable be kept for the passage of carriages and traffic along every county highway and county bridge during any interference therewith by the Board unless where by arrangement with the county council a county highway or county bridge may be shut up and in case of default in compliance with this provision the county council may by their own servants and workmen clear any such carriageway and may recover the expenses of and incident thereto from the Board :
- (5) Nothing in this Order contained shall authorise the Board to interfere with the structural part of any county bridge without the consent in writing of the district surveyor of the county council which consent shall not be unreasonably withheld and may be given upon such conditions as the county council or their surveyor may reasonably determine. Provided that the county council shall be deemed to have given any consent required under this section if within one month after plans have been submitted to their surveyor he shall not have given written notice to the Board objecting thereto :
- (6) Nothing in this Order contained shall interfere with the right of the county council to alter the level of or divert or improve in any manner they think fit any county highway in or along

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which any aqueduct conduit or line of pipes of the Board shall have been laid and the Board shall forthwith on receiving notice in writing under the hand of the clerk or surveyor of the county council alter the position of any such aqueduct conduit or line of pipes in the manner and to the extent prescribed by such notice or as in the case of difference shall be determined by arbitration in the manner hereinafter prescribed :

- (7) Nothing in this Order contained shall interfere with the right of the county council at any time or times to remove alter or rebuild any county bridge or the approaches thereto over near or attached to which any aqueduct conduit or line of pipes of the Board is carried in the same manner as they might have removed altered or rebuilt any such bridge or the approaches thereto if this Order had not been confirmed and such aqueduct conduit or line of pipes had not been constructed or laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such aqueduct conduit or line of pipes is laid being removed altered or rebuilt as aforesaid the Board shall at their own cost alter the position of such aqueduct conduit or line of pipes and any works by which such aqueduct conduit or line of pipes is carried over or near or attached to such bridge or the approaches thereto as aforesaid Provided that during the removal alteration or rebuilding of such bridge as aforesaid the county council shall afford all reasonable facilities for temporarily carrying such aqueduct conduit or line of pipes across or along any road or stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such aqueduct conduit or line of pipes :
- (8) All work shall be so executed by the Board as not to stop the traffic and so far as reasonably practicable not in any way to impede or interfere with the traffic on any highway or over any county bridge or the approaches thereto :

- (9) The county council or the Eastern Committee of the county council or the Western Committee shall not except in the case of their negligence be liable for or in respect of any damage or injury done to any work of the Board by reason of such work being laid at a depth below the surface of any highway insufficient for its protection from injury arising from the reasonable use of any steam or other roller or traction engine for the repair of such county highway or from the passage of the traffic in such highway or in repairing any county bridge or the approaches thereto : A.D. 1922.
- (10) For the purposes of section 57 of the Roads and Bridges (Scotland) Act 1878 the Board shall be deemed to be the person by whose order any excessive weight shall have been passed or any extraordinary traffic conducted on the county highways in connection with the execution of the works by this Order authorised :
- (11) If any difference arise between the county council or the Eastern Committee of the county council or the Western Committee and the Board touching this section or anything to be done or not to be done thereunder such difference shall failing agreement be determined by a single arbiter to be mutually agreed upon by the parties and failing agreement to be appointed by the Secretary for Scotland on the application of any of the parties.

78. The provisions of the section of this Order of which the marginal note is "For protection of county council of East Lothian" shall except where otherwise agreed in writing between the provost magistrates and councillors of the burghs of Haddington Tranent Prestonpans and Cockenzie and Port Seton (hereinafter referred to as "the town councils" and "the burghs" respectively) apply for the protection of the respective town councils as if the town councils and the highways and bridges within the respective burghs maintainable by the town councils had been named in the said section in the place of the county council county highways and county bridges respectively.

For protection of town councils of Haddington Tranent Prestonpans and Cockenzie and Port Seton.

A.D. 1922.

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Confirming
agreement
with
Marquis of
Tweeddale.

79. The agreement made the seventeenth and twentieth days of July one thousand nine hundred and twenty-two between the most Honourable William George Montagu Marquis of Tweeddale of the one part and the county council of the other part set forth in the Sixth Schedule to this Order is hereby confirmed and made binding on the parties thereto.

Board may
supply
water for
other than
domestic
purposes.

80. The Board may furnish to any person or company within the limits of supply a supply of water for other than domestic purposes to shops offices and warehouses and for steam engines or railway purposes or for warming or ventilating any premises other than dwelling-houses or for working any machine or apparatus or for cattle or for horses or for washing carriages motor cars or other vehicles or for a hose for watering gardens or for garden fountains or ornamental purposes or for any trade manufacture business or occupation or for hotels taverns public-houses or restaurants or any other purposes other than domestic (all which supplies are hereinafter included in the expressions "trade supply" or "supply for trade purposes") which respective supplies shall be furnished upon such terms and conditions and at such rates as shall be fixed from time to time by the Board and published by being exhibited in the office of the Board or upon such terms as may be agreed between the Board and any such person or company desiring such supply Provided that in the event of any disagreement either as to the ability of the Board to give a supply of water under this section or as to the rates terms or conditions on or in respect of which the supply is to be given the same shall subject to the provisions of this Order be fixed by the sheriff in a summary manner upon the application of the Board or of any person or company aggrieved and the decision of the sheriff shall be final Provided also that so far as possible the rate for such supply of water shall be uniform to all persons or companies in the same circumstances and requiring the same extent of supply and the charges for such supply shall be recoverable in the same manner as any other water rates or charges may be recovered under the authority of this Order Provided further that when water is so supplied the Board shall not charge the domestic water rate and also charge for water supplied to the same premises by meter but the Board shall have

the option either to charge the domestic water rate in respect of the premises for which a supply is given or to charge for the same by meter or they may charge in addition to the domestic water rate such special rates as may be fixed as aforesaid for water supplied otherwise than by meter for the purposes or any of them in this section mentioned. Provided that in the application of this section to lands premises or buildings belonging to any railway company such company shall be entitled to require the Board to set off against the aggregate of the said rate levied upon their whole lands premises and buildings other than dwelling-houses within the limits of supply the aggregate amount of the charges for water furnished to such companies for other than domestic purposes at all places wheresoever within the limits of supply the Board being entitled to charge either of such aggregates as they shall think fit.

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81. The charge for the supply of water under the immediately preceding section of this Order shall be payable quarterly or at such other times as the Board shall fix and unless the supply is by meter shall if payable quarterly or for a shorter period be paid in advance. Provided that where the supply is furnished by meter the consumer may be required to deposit such sum in security of the payment for such supply as the Board may think necessary.

Payment of charge for supply for non-domestic purposes.

82. The Board may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk or by a rate on rental or otherwise for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any local authority company or person supplying water under Parliamentary authority within the district to be supplied and of the local authority of that district.

Contracts for supplying water.

83. For the purpose of supplying water within the limits of supply from places within those limits the Board may enter into and carry into effect agreements with any local authority company or person for the purchase of water by the Board from such local authority company or person on such terms and conditions and for such period as may be agreed on.

Power to Board to purchase water.

A.D. 1922.

Power to
enter into
agreements
with Cor-
poration of
Edinburgh.

84. For the purpose of obtaining a supply of water in bulk from the corporation of the city of Edinburgh which that corporation are authorised by section 19 of the Edinburgh and District Water Order 1904 to afford to any local authority or other public authority or person within the county of East Lothian the Board may enter into and carry into effect agreements with the corporation of the city of Edinburgh for the purchase of water by the Board from that corporation for the supply of water within the limits of supply on such terms and conditions and for such period as may be agreed on.

Sale of
portion of
pipes within
jurisdiction
of local
authorities.

85. In the event of the Board supplying water beyond the limits of supply to and within the jurisdiction of any local authority as defined by the Public Health (Scotland) Act 1897 they shall be bound if and when such local authority shall themselves resolve to supply water to and within the jurisdiction of such local authority beyond the said limits to sell to such local authority on receiving six months' notice in writing any pipes plant or other apparatus of the Board which are used exclusively for the distribution of water within the jurisdiction of such local authority beyond the said limits under the powers of this Order and that for such price as may be agreed on or failing agreement as may be fixed by arbitration.

Supply of
water for
other than
domestic
purposes
not to affect
domestic
supply.

86. The supply of water beyond the limits of supply shall not prejudicially affect or restrict the supply of water from time to time required for domestic use or trade purposes within the limits of supply and the supply of water for other than domestic purposes within the limits of supply shall not prejudicially affect or restrict the supply of water from time to time required for domestic use within the limits of supply.

Cleansing
sewers &c.

87. The Board may if they see fit furnish a supply of water for the purposes of watering or cleansing streets or of flushing or cleansing sewers and drains or for public baths or washhouses or for public fountains either gratuitously or at such charge or reduced charge and upon such terms and conditions as they shall think proper Provided always that the supply of water under this section shall not prejudicially affect or restrict the supply of water from time to time required for domestic or trade purposes within the limits of supply.

88. Water supplied to any local or road authority for road purposes and for flushing sewers shall be supplied through a stand pipe the diameter of the orifice of which shall be determined by the Board. A.D. 1922.
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 Water for road &c. purposes.

89. For the purpose of providing for the better distribution of the water supply among the inhabitants it shall be lawful for the Board to require the owner of any dwelling-house or tenement of dwelling-houses not properly supplied with water in any street or road within the limits of supply in which the pipes of the Board are laid to take a supply of water for such house or tenement by connecting a service pipe with the main pipe of the Board in any such street or road (such connection to be made by the Board or some person to be employed by them at the expense of the owner) and to provide lay and maintain in good and sufficient repair such service pipes stand pipes or taps cisterns and other means and apparatus and in such positions as shall appear to the Board to be necessary for that purpose and in the event of refusal or delay on the part of such owner to comply with such requisition it shall be lawful for the Board to enter such house or tenement and premises connected therewith at any reasonable hours of the day and to provide lay and maintain such service pipes stand pipes or taps cisterns and other apparatus in such positions as aforesaid and to recover the expense thereof from such owner in the same manner as rates or charges are recoverable by the Board under this Order. Provided always that in the case of houses not exceeding five pounds of yearly rent or value such owner shall not be required to introduce water into each house but only such means of supply for each tenement of houses as the Board may deem necessary. Provided also that in case of any question or difference arising between the Board and any owner with respect to the necessity for a supply of water being provided for any house or tenement under this section or with respect to the number or description of service pipes stand pipes or taps cisterns or other apparatus necessary for the purpose aforesaid the same shall be determined and fixed by the sheriff in a summary manner on the application of either of the parties and the decision of the sheriff shall be final. Owners to provide and maintain service pipes.

90.—(1) The Board may make byelaws for the purpose of preventing the waste undue consumption for prevent-

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A.D. 1922.
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 ing waste
 &c. of water.

misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil pans water-closets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which under this Order the Board are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and sections 183 to 187 of the Public Health (Scotland) Act 1897 shall apply to such byelaws as if the Board were a local authority within the meaning of those sections.

(3) In case of the failure of any person to observe such byelaws as are for the time being in force the Board may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Board as the water rates in respect of the premises are recoverable.

Penalty for
 taking water
 from public
 wells except
 for domestic
 use.

91. Every person who takes water from any of the public fountains or stand-pipes supplied from any of the mains or pipes of the Board for any purpose other than domestic use shall for every such offence be liable to a penalty not exceeding five pounds.

Tube or
 hose not to
 be affixed
 to mains or
 pipes with-
 out consent
 of Board.

92. It shall not be lawful for the owner or occupier of any house or premises supplied with water by the Board without the written consent of the Board to affix or permit or suffer to be affixed any tube or hose to any of the mains or pipes of the Board or to any service pipe or apparatus of such owner or occupier for the purpose of washing horses or carriages motor cars or other vehicles houses or buildings or windows or for watering gardens or washing pavements or roads or for any other purpose and any person who contravenes this enactment shall be guilty of an offence and shall for every such offence forfeit and pay to the Board a penalty not exceeding forty shillings.

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93. The Board except where otherwise expressly provided in this Order shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Board not bound to supply several houses by one pipe.

94. The Board shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade purpose for which water is required.

Supply to houses partly used for trade &c.

95. The Board if necessary may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to sell or let meters.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Board to let for hire any water fittings to any person supplied by them with water.

96. Before any person connects or disconnects any meter by means of which any of the water of the Board is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Board of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Board and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Notice to Board of connecting or disconnecting meters.

97. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Board or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Board shall (without prejudice to any other right or remedy for the protection of the Board) be liable to a fine not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained.

Injuring meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered

A.D. 1922. — to be injured any pipe meter instrument or fittings belonging to the Board or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Board the Board may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Board by the person so offending and may be recovered by them as water rates and charges are recoverable under this Order The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Board when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
supply
fittings.

98.—(1) The Board may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Board in providing such materials and executing such work shall be paid by the person requiring the same Provided that anything done under this subsection shall be done by a plumber except where inconvenient and impracticable If any question or dispute shall arise under this section the same shall be referred to an arbiter to be appointed failing agreement by the Secretary for Scotland on the application of either party.

(2) Any fittings let for hire under the provisions of this section shall not be subject to poinding or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings

have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Board as the actual owners thereof: A.D. 1922.

Provided as follows:—

- (a) The Board shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):
- (b) Every sum charged by the Board in respect of the provision of such fittings or the repairing fixing or removal thereof shall be clearly stated in every demand note delivered by the Board to the consumer:
- (c) The total sums expended and received by the Board in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the Board for such year.

99. The Board may subject to the provisions of this Order agree with any person for supplying him with water by measure and may require any person supplied with water for other than domestic purposes to take and pay for his supply by measure and in both cases a meter for ascertaining the quantity consumed shall be provided by the Board at a reasonable rent to be fixed by the Board. Rent for water may be ascertained by meter.

100. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board or be given by the consumer personally at the office of the Board. Notice of discontinuance.

101. The Board may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in Power to lay pipes in streets not dedicated to public use.

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A.D. 1922. — across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Order.

As to breaking up ground for maintaining communication pipes.

102. For the purpose of complying with any obligation under this Order to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

Board to estimate annual sums required.

103. The Board shall and they are hereby authorised and required once in every year to estimate and fix the amount of money necessary to be levied for the purpose of defraying the costs charges and expenses of supplying water for and during the year then current and the interest of money borrowed and owing at the commencement of this Order for the repayment of which the Board is liable under this Order or that may be borrowed under the provisions of this Order or for payment of any instalments of principal or of principal and interest of any moneys already borrowed or to be borrowed as aforesaid and the payments to sinking funds together with the expense of maintaining and managing the works transferred by and the works to be constructed under this Order and obtaining and providing and distributing the supplies of water and the salaries wages and other expenses of the treasurers engineers surveyors clerks collectors or other officers or servants employed by the Board and all other charges and expenses chargeable against revenue.

Estimate to be considered and domestic water rate imposed.

104.—(1) The estimate to be made up in manner before provided shall be submitted to and considered by the Board at a meeting to be held as soon as conveniently may be after they shall have obtained a copy of the valuation roll or rolls for the year then current and at such meeting or any adjournment thereof the Board may and they are hereby authorised and required annually to impose assess levy and recover a rate (in this Order called "the domestic water rate") equally on the owners and occupiers of all lands and heritages within the limits of supply at such rate in the pound of the annual value thereof as together with the public water rate hereinafter mentioned shall be sufficient for the purposes aforesaid.

(2) Provided that the domestic water rate shall not be assessed or levied in respect of :— A.D. 1922.

- (a) Dwelling-houses railway stations or other buildings unless such dwelling-houses railway stations or other buildings shall have been actually supplied with water by the Board or unless some pipe of the Board or some pipe through which the Board are entitled to give a supply to such buildings shall be laid down within one hundred yards of the same measuring from the outer wall thereof or of any domestic office in contact therewith and occupied as appurtenant thereto ;
- (b) Tenements situate in a private close or place unless such tenement shall have been actually supplied with water by the Board or unless some pipe of the Board or some pipe through which the Board are entitled to give a supply to such tenements shall be laid down within one hundred yards of the entrance to such close or place or the nearest part thereof ;
- (c) Agricultural lands unless some pipe of the Board shall be laid within one hundred yards from some dwelling-house or dwelling-houses upon the same and then only in respect of the annual value of such dwelling-house or dwelling-houses and in any case in which the annual value of such dwelling-house or dwelling-houses is not entered in the valuation roll separately from the remainder of the subjects of which it or they form part the Board shall subject to a right of appeal to the sheriff whose decision shall be final by any person aggrieved determine the annual value of the said dwelling-house or dwelling-houses for the purposes of the domestic water rate. In this subsection the expression " agricultural lands " means any lands and heritages used for agricultural or pastoral purposes only or as market gardens orchards allotments woodlands parks gardens or pleasure grounds.

(3) Provided further that for the purposes of the domestic water rate the annual value of the following lands or premises shall be held to be one-fourth of the

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A.D. 1922. — annual value thereof entered in the valuation roll (videlicet):—

- (i) All lands and premises used exclusively as a canal or basin of a canal or towing-path for the same or as a railway or tramway excepting the stations depôts and other buildings which shall be assessable in like manner and to the same extent as other lands and buildings within the limits of supply;
- (ii) All waterworks sewage works gasworks electric power stations or sub-stations or electric supply works and underground or other pipes mains or cables of any water company gas company electric power or electric supply company corporation or commissioners;
- (iii) All mines minerals and quarries.

(4) Provided further that for a period of twelve years from the commencement of this Order the domestic water rate to be levied by the Board within the burgh of Prestonpans the burgh of Cockenzie and Port Seton and the special water supply district of Prestonpans and Tranent (landward) as existing at the commencement of this Order shall not be less than three shillings and threepence in the pound and that for a period of twenty years from the commencement of this Order the domestic water rate to be levied by the Board within the Gifford special water supply district as existing at the commencement of this Order shall not exceed twopence in the pound on owners and twopence in the pound on occupiers nor in the Garvald special water supply district as existing at the commencement of this Order fivepence in the pound on owners and fivepence in the pound on occupiers.

Public
water rate.

105. The Board may and they are hereby authorised annually to impose and levy a rate to be called "the public water rate" equally on the owners and occupiers of all lands and heritages within the limits of supply according to the full yearly rent or value thereof as entered in the valuation roll such rate not to exceed (a) twopence in the pound when the domestic water rate to be levied in terms of the immediately preceding section does not exceed two shillings in the pound (b) threepence in the pound when the said domestic water rate does not exceed three shillings in the pound (c) fourpence in the

pound when the domestic water rate does not exceed three shillings and sixpence in the pound (*d*) fivepence in the pound when the domestic water rate exceeds three shillings and sixpence in the pound. Provided that until the Board shall have carried their mains to or have otherwise provided for a water supply for the parishes of Garvald Morham Yester and Haddington the maximum public water rate to be levied in those parishes respectively shall not exceed threepence in the pound. Provided further that for a period of twelve years from the commencement of this Order the minimum public water rate to be levied within the burgh of Prestonpans and the burgh of Cockenzie and Port Seton and the special water supply district of Prestonpans and Tranent (landward) as existing at the commencement of this Order shall be fourpence in the pound. A.D. 1922.

106. The Board shall not be obliged to furnish a supply of water to any person for any less sum than five shillings in any one year. Minimum water rate.

107. The annual rent or value of all lands heritages houses buildings and other premises and property liable to be assessed for the domestic water rate and the public water rate shall subject to the provisions of this Order be ascertained by the valuation roll or valuation rolls. Mode of ascertaining rental of property.

108. Every assessment for the domestic water rate and the public water rate shall be fairly transcribed in a book to be kept for that purpose which book is in this Order called the water assessment roll and such water assessment roll shall show the yearly rent or value of the lands and premises liable to be assessed for the domestic water rate and the public water rate and according to which such assessment is intended to be levied and may be in the form contained in the Second Schedule to this Order or to the same effect and every such water assessment roll shall contain an account of every particular set forth at the head of the respective columns so far as the same can be ascertained and notice shall be given by the collector of the Board to every person of the rate charged upon him the place of payment and the date at which such payment is required to be made and that he may appeal to the Board against the same within fourteen days after such notice. Form of water assessment roll and of rate and notice thereof to ratepayers.

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Assessment
roll to be
open to
inspection
of rate-
payers.

109. The water assessment roll immediately after any rate is assessed shall be open to the inspection of any person interested or liable to pay such rate at all reasonable times and any such person may take copies or extracts from the water assessment roll of the rate in which he is interested or for which he is liable without paying anything for the same and any person having the custody of such assessment roll who refuses or does not permit any person so interested or rated as aforesaid to take copies or extracts in regard to such rate shall for every such offence be liable to a penalty not exceeding five pounds.

Assessment
roll may be
amended.

110. The Board may amend the water assessment roll in respect of any such rate assessed by virtue of this Order by inserting therein the name of any person claiming and entitled to have his name therein as owner or occupier or by inserting therein the name of any person who ought to have been rated or who since the making up of the said roll has become liable to be rated or by striking out the name of any person who ought not to have been rated or by raising or reducing the sum at which any person has been rated if it appear to the Board that such person shall have been erroneously rated or by making such other amendments therein as will make such rate conformable to this Order and no such amendment shall be held to make void the rate. Provided always that every person aggrieved by any such alteration shall have the same right of appeal therefrom as he would have had if his name had been originally inserted in the assessment roll and no such alteration had been made and as respects such person the rate shall be considered to have been assessed at the time when he received notice of such alteration and every person whose rate is increased shall be entitled to seven days' notice of such increase before the rate shall be payable by him.

Any person
aggrieved
may lodge
objections
and be
heard.

111. If any person shall consider himself to be improperly or unduly rated he may within fourteen days from the date of the notice being given of such rate lodge with the collector written objections signed by him and the Board or a committee named by them shall proceed on such days and at such places as shall be fixed by them and of which notice shall be given to such person by the collector not less than four days previously to consider

such objections and shall dispose thereof summarily and without written pleadings and the decision of the Board shall be final. A.D. 1922.

112. The domestic water rate and the public water rate shall be assessed for the period from the term of Whitsunday in each year to the term of Whitsunday in the year following and the first assessment by the Board shall be laid on as from Whitsunday one thousand nine hundred and twenty-three to Whitsunday one thousand nine hundred and twenty-four for the year preceding the last-mentioned date and the said rates shall be payable at such place or places and on such day as the Board shall appoint or otherwise as the Board may determine. Water rates to be assessed from Whitsunday to Whitsunday.

113. It shall be lawful for the collector on the expiration of the time specified in the notice of assessment to recover any arrears of any water rate or charge due by any person or by any number of persons either according to the ordinary procedure before any competent court or by obtaining from the sheriff a summary warrant to recover such arrears with the addition of ten per centum thereon and such person or persons shall thereupon be bound to pay such ten per centum which warrant the sheriff shall grant on production of a certificate by the collector that he had given to each such person a notice requiring him to make payment of the amount due by him within fourteen days thereafter that the said period had expired and that the said amount was still truly due and such warrant shall authorise the collector or officers of court to enter into any premises in the occupancy of any person so in arrear and to poind seize remove or secure any goods and effects therein belonging to or in the lawful possession of such person or persons or so much thereof as will fully satisfy the arrears due by him or them with the said addition of ten per centum thereon and such warrant shall also authorise the collector or officers of court or licensed auctioneer after the lapse of four days in the event of the non-payment of the said arrears and costs to sell and dispose of the said goods and effects by public auction on three days' notice and apply the price in payment of the said arrears and ten per centum thereon due by such person and the balance shall be paid to such person and the collector shall for a period of three months after the date of every sale preserve evidence of the Recovery of water rates.

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A.D. 1922. — amount of such proceeds and the disposal thereof and such warrant shall also discern and ordain instant execution by arrestment.

Owners of houses not exceeding certain rents to be liable for rates.

114. For the purposes of levying and recovering from the owners of dwelling-houses or parts of dwelling-houses occupied as separate tenements the water rates and charges payable by the occupiers of such houses or parts of houses under this Order the Board shall have and may exercise the powers conferred on an assessing authority by the House Letting and Rating (Scotland) Act 1911 and any Act amending the same as if the limits of supply were a burgh or special district in which the said Act of 1911 had been adopted with a population of twenty thousand and less than fifty thousand.

Water assessment roll to be evidence.

115. In any proceeding to levy and recover or consequent on the levying or recovery of any rate or charge under the provisions of this Order the water assessment roll or a duly certified extract therefrom signed by the clerk to the Board and all entries therein shall by the production thereof alone and without any evidence that the requirements of this Order have been complied with be received as evidence of such rate and of the amount thereof.

Water rates to be regulated so as not to exceed expenses.

116. If in any year the revenue of the Board shall be more than sufficient for all the purposes to which it is applicable the Board shall and they are hereby required to carry the surplus to the credit of the account for the following year in reduction of the estimate of money required for such year and when a deficiency occurs in one year it shall be provided for in the estimate and by assessment in the next year and the Board shall as nearly as possible so regulate rates and charges that they may one year with another respectively produce the amount of money required.

Application of rates and charges.

117. The several rates and charges levied and received by the Board under the authority of this Order and the other income of the Board shall be applied in the manner and to the purposes following (that is to say) :—

First in defraying the expense of managing and maintaining the water undertaking of the Board including salaries and other payments to officers and servants and the annual costs charges and

expenses of providing and supplying water and paying any feu-duties and ground annuals and other annual payments exigible in respect of any lands streams or property forming part of the water undertaking; A.D. 1922.

Secondly in payment of the interest and the instalments of principal or of principal and interest of money borrowed by the county council or the town councils of Prestonpans and Cockenzie and Port Seton respectively;

Thirdly in payment of the interest on the money borrowed by the Board under this Order;

Fourthly in setting apart the instalments or the contributions to the sinking fund by this Order required for the repayment of money borrowed by the Board or for the repayment of which the Board are liable;

Fifthly in establishing and maintaining the reserve fund which the Board are by this Order authorised to establish and maintain;

Lastly in carrying the several other provisions of this Order into execution in such manner as the Board shall from time to time order and direct.

118. The Board may if they think fit set aside annually out of their revenue any sum not exceeding two thousand pounds as a reserve fund and may invest and accumulate the same at interest in any securities in which they are authorised to invest sums paid into any sinking fund which reserve fund shall be applicable from time to time to meet any extraordinary claim demand or charge arising against the Board Provided that the said fund shall never be allowed to accumulate so as to exceed at any time the sum of twenty-five thousand pounds. Reserve fund.

119. Subject to the provisions of this Order the Board may apply for the purposes of this Order any money transferred to the Board under this Order but as regards money in the nature of capital only for purposes to which capital is properly applicable. Application of moneys transferred to the Board.

120. The Board may from time to time borrow at interest the sums of money necessary for the purposes Power to borrow.

A.D. 1922. hereinafter specified and may make and grant mortgages of the rates and charges by this Order authorised in security of the money so borrowed and interest thereon (that is to say) :—

- (a) For repayment of any money already borrowed by the county council or their predecessors or the town councils of Prestonpans and Cockenzie and Port Seton previously to the commencement of this Order and remaining unpaid and relating to the water undertakings transferred by this Order and to the water undertakings of the water districts the sum necessary for the purpose :
- (b) For the purchase of land and servitudes the sum of nine thousand six hundred and fifty pounds :
- (c) For the construction of storage reservoirs embankments and relative works the sum of eighty-nine thousand four hundred and twenty-four pounds :
- (d) For roads of access the sum of three thousand nine hundred and twenty-one pounds :
- (e) For the construction of catchwater channels or conduits the sum of sixteen thousand one hundred and sixty-seven pounds :
- (f) For the construction of trunk mains the sum of forty-four thousand five hundred pounds :
- (g) For subsidiary works the sum of nineteen thousand and seventy-five pounds :
- (h) For distribution mains and the general purposes of the undertaking of the Board to which capital is properly applicable (including the sums payable by the Board under the section of this Order of which the marginal note is "As to compensation water") the sum of ten thousand pounds and with the sanction of the Secretary for Scotland but not otherwise such further sums as may be necessary :
- (i) For payment of the costs charges and expenses of and incident to preparing for obtaining and confirming this Order the sum requisite for that purpose.

121.—(1) The Board shall pay off all moneys borrowed by them under this Order within the respective periods following (hereinafter referred to as “the prescribed period”):—

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Repay-
ment of
borrowed
money.

As to money borrowed for the purpose (a) mentioned in the immediately preceding section within such period and by such method as the Secretary for Scotland may prescribe;

As to money borrowed for the purposes (b) and (c) mentioned in the said section within sixty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (d) (e) and (f) mentioned in the said section within fifty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (g) mentioned in the said section within forty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (h) mentioned in the said section first as respects the sum of ten thousand pounds therein mentioned within thirty years from the date or dates of borrowing the same and second as respects any sum borrowed with the sanction of the Secretary for Scotland within such period not exceeding forty years and by such method as the Secretary for Scotland may prescribe;

As to money borrowed for the purpose (i) mentioned in the said section within five years from the commencement of this Order.

(2) Any moneys received by the Board from the county council or the town councils representing any sinking fund shall be applied by the Board in repayment of moneys borrowed or owing by the county council or the town councils in respect of the water undertakings transferred by this Order or the supply of water to the water districts respectively or in repayment of moneys borrowed by the Board for the purpose (a) mentioned in the immediately preceding section or be paid into a sinking fund which may be formed for the repayment of such last-mentioned moneys.

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Mode of
repayment
of borrowed
money.

122. The Board shall pay off all moneys borrowed by them for capital expenditure under this Order either by means of a sinking fund formed under the provisions of this Order or by equal yearly or half-yearly instalments of principal or of principal and interest combined or partly by one of those methods and partly by another or others of them.

Sinking
fund.

123.—(1) If the Board determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such sinking fund shall be formed and maintained either :—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding four per centum per annum or such other rate as the Secretary for Scotland may from time to time fix will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Board the Board being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Board towards the equal annual payments to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1922.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Board.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Board in addition to the payments provided for by this Order.

(7) If it appears to the Secretary for Scotland or to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

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—

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Board may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Board may determine.

Annual
return to
Secretary
for Scotland
with respect
to sinking
fund.

124. The clerk to the Board shall within two months after the expiration of each year during which any sum is by this Order required to be paid as an annual instalment or to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which any investment has been made and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such clerk so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable If it appears to the Secretary for Scotland

by any such return or otherwise that the Board have failed to pay any instalment or to set apart the sum required by this Order to be set apart for the sinking fund or to make any increased payment thereto by this Order required or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Order the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be paid or set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose. A.D. 1922.

125. If after having borrowed the sums of money by this Order authorised or any part thereof the Board shall pay off the same or any part thereof otherwise than by means of the sinking fund hereinbefore mentioned or by instalments it shall be lawful for the Board again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time Provided that the Board shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose Provided also that all moneys so borrowed by the Board shall for the purpose of repayment be deemed part of the sum originally borrowed by them and shall be repaid within the period prescribed for the repayment of the money in lieu of which such re-borrowing has been made. Board may re-borrow.

126. The Board may accept and take from any bank or banking company credit on a cash account to be opened and kept with such bank or banking company in the name of the Board according to the usage of bankers in Scotland to the extent of the aggregate amount which the Board are at the time authorised to borrow or any part thereof and may make and grant mortgages of the several rates and charges authorised and leviable under the authority of this Order in security Board may borrow on cash account.

[Ch. v.] *East Lothian (Western District)* [13 GEO. 5.]
Water Order Confirmation Act, 1922. (Session 2.)

A.D. 1922. of the payment of the amount of such credit or of the sums advanced from time to time on such cash account with interest thereon. Provided always that the whole sums due and owing by the Board on such cash account and borrowed by them on mortgage shall never when taken together exceed the aggregate amount of the sum by this Order authorised to be borrowed and not repaid by instalments or by sinking fund.

Borrowing powers for current expenses.

127. In order to raise such money as may be necessary to defray the current annual expenditure of the Board the Board may borrow during the currency of any financial year in addition to the other sums by this Order authorised to be borrowed any sum or sums not exceeding in the whole one-half of the approximate amount of revenue of the Board for the year then current from any bank or banking company or other company or person on such terms and conditions and in such form as may be agreed on between the parties. Provided that such sums so borrowed shall be paid off and extinguished at or before the end of the then current year out of the moneys received by the Board on revenue account.

Application of borrowed money.

128. All money borrowed by the Board under this Order on mortgage or cash account or otherwise (except money borrowed for current expenses) shall be applied only to purposes to which capital is properly applicable.

Appointment of auditor.

129. The accounts of the Board shall be audited by an auditor to be appointed every year by the Secretary for Scotland and the Board may pay him such remuneration for his services as they think reasonable and in the event of any dispute as to such remuneration the amount thereof shall on the application of either party be fixed by the Secretary for Scotland.

Form of mortgage.

130. Every mortgage to be granted by the Board shall be by deed duly stamped in which the consideration shall be truly stated and may be in the form contained in the Third Schedule to this Order or to the like effect.

Manner in which mortgages and orders on bank

131. Every mortgage to be granted by the Board may be partly in writing and partly printed and shall besides being under the common seal of the Board be signed by at least two members of the Board and the

treasurer and all drafts or orders on the cash account before mentioned shall be signed by two members of the Board and the treasurer Provided always that none of the said persons shall by his subscription of any such mortgage draft or order be or be held to have rendered himself individually or personally liable for the payment of any money so borrowed drawn or received or any interest thereon or of any sums whatsoever in respect thereof.

A.D. 1922.

—
account to
be signed
and
executed.

132. Any person entitled to any such mortgage may transfer his right and interest therein to any other person and every such transfer shall be by deed or by indorsation on the mortgage duly stamped wherein the consideration shall be truly stated and may be in the form contained in the Fourth Schedule to this Order or to the like effect.

Transfer of
mortgages.

133. If any such mortgage be transmitted by reason of the bankruptcy of the person entitled thereto there shall be produced to the Board official evidence of such bankruptcy and of the vesting of the bankrupt estate in the trustee official assignee or other person to whom such estate shall be transferred.

Transmis-
sion of
mortgages
in case of
bankruptcy.

134. The Board shall not be bound to see to the execution of any trust whether express implied or constructive to which any mortgage or other security to be granted by the Board or the money principal or interest thereby secured may be subject and the receipt of the person in whose name any such mortgage or other security stands in the books of the Board shall be a sufficient discharge to the Board for any money payable in respect of such mortgage or other security notwithstanding any trust to which the same or the money thereby secured may then be subject and the Board shall not be bound to see to the application of the money paid on such receipt.

Board not
to regard
trusts.

135. All mortgages and all moneys advanced and lent on the security of the rates and charges under this Order shall be moveable or personal estate and transmissible as such and shall not be of the nature of heritable or real estate.

Mortgages
of rates to
be personal
estate.

A.D. 1922.
 —
 Discharge of
 mortgages.

136. Any person entitled to any mortgage granted by the Board under the authority of this Order may discharge the same and his right and interest therein in favour of the Board and every such discharge may be written or partly written and partly printed on the mortgage and may be according to the form contained in the Fifth Schedule to this Order or to the like effect and such discharge when signed by the person entitled to such mortgage and duly stamped shall be valid and effectual to all intents and purposes.

Protection
 of lender
 from
 inquiry.

137. No person lending money to the Board shall be bound to inquire as to the observance by the Board of any provision of this Order or be bound to see to the application or be answerable for any loss mis-application or non-application of such money or any part thereof.

Appoint-
 ment of
 judicial
 factor.

138. The mortgagees of the Board may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than one thousand pounds.

Application
 of penalties
 &c.

139. All penalties fines and forfeitures imposed for offences against this Order or any Act wholly or partially incorporated herewith or any byelaw of the Board for the time being in force may be recovered summarily and shall (except penalties fines and forfeitures imposed on or recovered from the Board) be paid to the Board and be by them carried to their revenue account.

Prosecution
 of offenders.

140. All offenders against any of the provisions of this Order or of any of the Acts incorporated with the same respectively or against any of the byelaws of the Board may be prosecuted and all penalties and forfeitures in respect of offences against any of such provisions or byelaws may be recovered by and in the name of the clerk before the sheriff.

Gratuities
 super-
 annuation
 allowances
 and com-

141.—(1) The Board may if they think fit in cases not within the Workmen's Compensation Act 1906 from time to time pay such annual or other sum of money as to them shall seem fit and reasonable to any officer or

person in their employ in addition to the usual salary or wages of such officer or person as a compensation for any accident injury loss or damage which may happen to or be sustained by such officer or person and also to any officer or person in their employ by way of retiring or superannuation allowance for length of service and also to the widow or children of any officer or person in the employ of the Board or engaged in the execution of any work for them. The cumulo amount of allowances which may be made by the Board under this subsection shall not exceed in any year the sum of one thousand pounds except with the sanction of the Secretary for Scotland.

A.D. 1922.

—
 pension
 to officers.

(2) The Board may pay to any officer or servant of the Western Committee or of the Prestonpans Combination Water Trust such reasonable compensation as they may think fit not exceeding an amount equal to twice the annual salary which such officer or servant was receiving at the commencement of this Order for loss of office or for any other direct pecuniary loss which such officer or servant may incur by reason of the confirmation of this Order.

142. Any notice which the Board may be required or authorised to give to any person may be served on such person either personally or on his known agent or by sending the same through the post in a prepaid letter addressed to him or to his known agent by name at his last known place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or in case the place of abode or business of the person to be served is unknown it shall be sufficient to affix the notice or a copy thereof on some conspicuous part of the premises (if any) to which the notice may relate.

Service of
 notices.

143. Where under this Order any question or dispute is to be referred to an arbiter or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to an arbiter appointed by the Scottish Board of Health.

References
 to arbitra-
 tion.

144. A copy of or extract from the minutes or minute book of the Board authenticated by the signature of the clerk to the Board shall be received as evidence in all

Extracts
 from
 minute

A.D. 1922. legal or other proceedings in the same way and to the same effect as the original minutes or minute book themselves.
books to be evidence.

Power to apply for further powers &c.

145.—(1) Where in the judgment of the Board it is expedient for the Board to apply to the Secretary for Scotland for an Order to repeal amend or extend any Order or Act for the time being relating to or affecting the Board or for any alteration or extension of their powers (including the grant of new powers) or otherwise in respect of any matter for the improvement of or in connection with the water supply of their district they may pay the costs and expenses attending such application out of their revenue as part of their working expenses.

(2) No expenses in relation to any such application shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in two newspapers published or circulating within the limits of supply such notice to be in addition to the ordinary notices required for summoning such meeting No further expense shall be incurred or paid as aforesaid after the deposit of the petition for the Order unless the propriety of the promotion of such Order shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of notice not less than fourteen days after the deposit of the petition for the Order.

(3) The Board may oppose any application for an Order or any Bill in Parliament which in their judgment it is expedient in the interests of their undertaking to oppose and may on obtaining the consent of the Secretary for Scotland pay the costs and expenses attending such opposition out of their revenue as part of their working expenses.

Costs of Order.

146. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Board out of their revenue or out of money to be borrowed for the purpose under this Order.

The SCHEDULES referred to in the foregoing Order. A.D. 1922.

THE FIRST SCHEDULE.

LIMITS OF SUPPLY.

The burgh of Prestonpans.

The burgh of Cockenzie and Port Seton.

The Western District of the county of East Lothian which district comprises the parishes of Aberlady Athelstaneford Bolton Dirleton Garvald and Bara Gladsmuir Haddington (exclusive of the burgh of Haddington) Humbie Morham Ormiston Pencaitland Prestonpans Saltoun Tranent (exclusive of the burgh of Tranent) and Yester.

THE SECOND SCHEDULE.

FORM OF WATER ASSESSMENT ROLL.

Assessment for the domestic water rate and the public water rate under the East Lothian (Western District) Water Order 1922 for the year from the 19 to the 19 at the rate of in the pound for the domestic water rate and in the pound for the public water rate.

No.	Name of Owner.	Name of Occupier.	Description and Situation of Property.	Full Annual Value.	Domestic Rate at in Pound.	Public Rate at in Pound.
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A.D. 1922.

THE THIRD SCHEDULE.

FORM OF MORTGAGE.

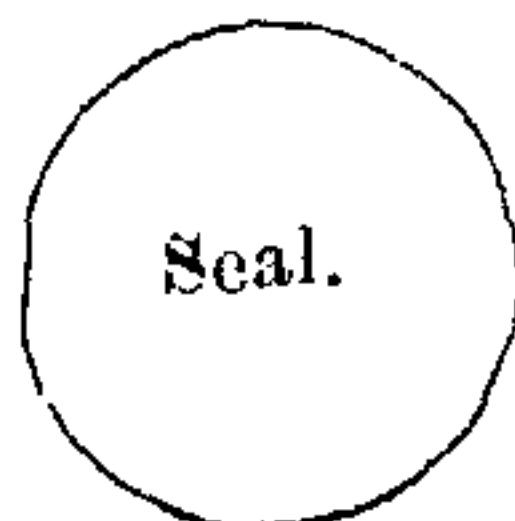
EAST LOTHIAN WESTERN DISTRICT WATER BOARD.

MORTGAGE No. £

By virtue of the East Lothian (Western District) Water Order 1922 we the East Lothian Western District Water Board in consideration of the principal sum of _____ paid by _____ to the treasurer of the Board for the purposes of the said Order do hereby grant and assign to the said _____ and his executors administrators and assignees [or as the case may be] such proportion of the revenues of the Board under the said Order as the said sum of _____ doth or shall bear to the whole sum which is or shall be borrowed upon the credit of the said revenues To hold to the said mortgagee and his foresaids until the said principal sum and the whole interest due thereon shall be fully paid and satisfied And it is hereby stipulated that the said principal sum shall be repayable on the _____ or shall thereafter in virtue hereof remain as a loan to the Board until the expiration of such further term of years as shall be specified in a minute or minutes to be indorsed hereon and signed by the said mortgagee or his foresaids and by the said treasurer which minute or minutes are hereby declared and shall be held to be valid and binding though they may be neither holograph of the said parties nor tested and the Board shall pay interest on the said principal sum from the _____ day of _____ to the date of repayment at the rate of _____ per centum per annum declaring that the said mortgagee and his foresaids shall not be entitled to make and that the Board shall not be bound to recognise or register any partial assignation of these presents or of the sums of money principal or interest hereby secured and that the Board shall not be liable for any expenses that may be incurred by the said mortgagee or his foresaids for or in relation to the preparation revision adjustment or execution of this mortgage or of any discharge renunciation assignation or minute of postponement or renewal thereof.

In witness whereof [testing clause according to the law of Scotland].

(Signed by two members of the Board and the treasurer.)



THE FOURTH SCHEDULE.

A.D. 1922.

FORM OF TRANSFER OF MORTGAGE.

I _____ in consideration of the sum of _____
paid to me by _____ do
hereby transfer to the said _____ and his
executors administrators and assignees [or as the case may be]
a certain mortgage number _____ dated the
made in favour of _____ by the East Lothian
Western District Water Board by virtue of the East Lothian
(Western District) Water Order 1922 in connection with their
undertaking for securing the sum of _____ [or if the
transfer be by endorsement the within mortgage] together with
the interest thereon from and after the
and all my right and interest in and to the principal money
thereby secured and interest thereon as aforesaid and in and to
the revenues thereby assigned.

In witness whereof [testing clause according to the law of
Scotland].

THE FIFTH SCHEDULE.

FORM OF DISCHARGE OF MORTGAGE.

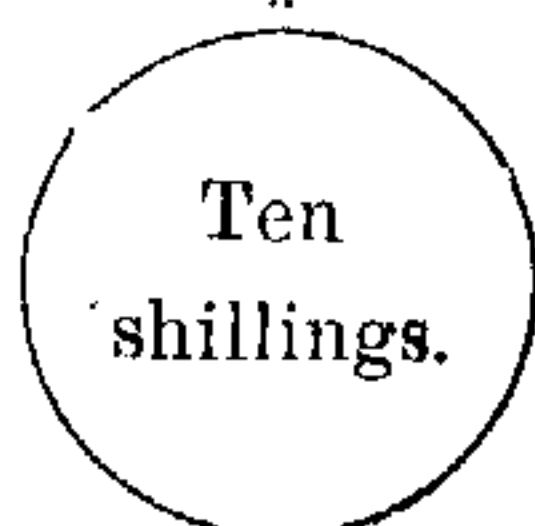
Received from the treasurer of the East Lothian Western
District Water Board acting on their behalf the sum of _____
being the principal sum contained in the
within mortgage (all interest due thereon having been previously
paid) and the said mortgage is now delivered up as discharged.

Dated this _____ day of _____ one thousand
nine hundred and _____

A.D. 1922.

THE SIXTH SCHEDULE.

Stamp.



AGREEMENT between the most HONOURABLE WILLIAM GEORGE MONTAGU MARQUIS OF TWEEDDALE residing at Yester in the county of East Lothian (who with his heirs and successors in the estate of Yester is hereinafter called the "First Party") of the first part and the COUNTY COUNCIL OF THE COUNTY OF EAST LOTHIAN (hereinafter called the "Second Parties") of the second part.

WHEREAS the Second Parties are applying under the provision of the Private Legislation Procedure (Scotland) Act 1899 for a Provisional Order in terms of a draft Provisional Order intituled "Provisional Order to constitute and incorporate a Board for the supply of water to the Western District and part of the Eastern District of the county of East Lothian to transfer to the Board the water undertakings of the county council and the Western District Committee of the county of East Lothian and the undertakings of the burghs of Prestonpans Cockenzie and Port Seton and Haddington to authorise the Board to construct additional waterworks to confer further powers on the Board and for other purposes":

And whereas it is inter alia proposed by the said Provisional Order to authorise the Board to acquire for the purposes of the said Provisional Order certain lands belonging to the First Party lying mainly in the parish of Garvald and Bara and partly in the parish of Yester and forming part of the estate of Yester or rights and interests therein and to make and maintain on or in said lands the following works (namely) (a) A reservoir (Work No. 1) on the stream known as the Hopes Water (b) Two aqueducts conduits or line or lines of pipes both terminating in said stream 140 yards or thereabouts measured in a southeasterly direction from the point where the dam of Work No. 1 crosses the said stream (Works Nos. 2 and 3) (c) An aqueduct conduit catch-water or line or lines of pipes from the stream called the Fall Burn to the said reservoir (Work No. 4) (d) An aqueduct conduit catch-water or line or lines of pipes from Work No. 2 to the junction of the Fall Burn with the Hopes Water (Work No. 5) (e) An aqueduct conduit or line or lines of pipes from point of termination of Work No. 5 to the boundary of the Yester Estate in or near the village of Gifford (part of Work No. 6) (f) A carriageway commencing with a

junction with the existing public road from Yester to Hopes to the north-western end of the dam of said reservoir (Work No. 7) and (g) An aqueduct conduit catch-water or line or lines of pipes from the boundary of the Yester Estate near the junction of the streams known as the Blinkbonny Burn and the Back Burn to a junction with Work No. 6 near the existing water house of the town council of Haddington (part of Work No. 8):

A.D. 1922.

And whereas the First Party has lodged a petition against the said Provisional Order:

And whereas in respect of the Second Parties entering into these presents the First Party has agreed to consent to the said Provisional Order so far as the same affects the lands and property of the First Party being passed upon the terms and conditions hereinafter written:

Therefore the First and Second Parties have agreed and hereby agree together as follows namely:—

First The First Party shall on these presents being signed and delivered withdraw his petition against the said Provisional Order.

Second In the event of the said Provisional Order being passed into law the East Lothian Western District Water Board incorporated by the said Order (hereinafter referred to as “the Board”) shall under the powers thereby conferred on them be entitled to acquire the lands—not exceeding 100 acres—rights and interests so far as belonging to the First Party necessary for the Works Nos. 1 2 3 4 5 6 7 and 8 before narrated and as more fully set forth in the said draft Provisional Order and relative deposited plans.

Third The Board shall pay to the First Party within six months after the commencement of the said Order (1) the sum of 1,000*l.* as representing the capital value of the option to delay the purchase of the lands required for the said Hopes Reservoir with interest at the rate of five per centum per annum thereafter until payment and (2) the sum of 1,000*l.* in respect of wayleaves for pipes aqueducts and the carriageway (Work No. 7) set forth in the said draft Order as such wayleaves and carriageway are shown on the deposited plans.

Fourth The Board shall pay to the First Party as compensation for the land to be acquired not exceeding as aforesaid for the construction of the said reservoir and for the purposes of the said Order at the rate of 50*l.* per acre and the Board shall give intimation of the area they propose to take before they begin work upon the said reservoir and the price shall be payable on intimation being given and shall carry interest thereafter at the rate of five per centum per annum until paid.

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Fifth If at any time during the construction of the said reservoir aqueducts and other works the First Party is unable to let upon terms and conditions satisfactory to him Hopes House and shootings at present let to Captain Archibald Edward Butter he shall be entitled to call upon the Board to become tenants thereof at a rent of 300*l.* per annum subject to right to sublet to a tenant approved of by the First Party the Board being bound to keep up the garden in a proper state of cultivation and to pay the wages of one gamekeeper and tenants' rates and taxes and all other outgoings except owner's rates and taxes and the cost of keeping Hopes House wind and water-tight which shall be borne by the First Party The rent of 300*l.* shall be payable as for the year from Whitsunday to Whitsunday and the Board shall be bound to pay the rent of 300*l.* in respect of any such year in which the First Party gives intimation of his inability to let as aforesaid not later than 28th May in such year.

Sixth The Board shall relieve the First Party of all claims in respect of their operations which may be put forward by the said present tenant of the said shootings who holds under a lease expiring at Whitsunday 1927 In the event of the said tenant desiring to give up his lease in consequence of said operations the First Party shall be entitled to release him and the Board shall become tenants of Hopes House and shootings under the immediately preceding clause provided the Board are advised of such release not later than 28th May.

Seventh So far as not affecting the use thereof by the Board the First Party shall have the exclusive right of fishing and shooting on the said reservoir with right of access thereto and with power to the First Party to stock the said reservoir with fish to erect and maintain a boat-house at the said reservoir and to put a boat thereon.

Eighth The new road to be constructed by the Board from the public road at East Hopes to the dam of the said reservoir shall not be open to the public and gates will be placed across it by the Board The First Party and his tenants shall have access to and be entitled to make use of the said new road leading to the said reservoir but they shall not be liable for any of the expense of maintaining the said new road which shall be maintained throughout its whole length solely at the expense of the Board.

Ninth In the event of the operations of the Board interfering with the existing private water supply to the farm houses and other buildings at West Hopes the Board shall be bound to give in substitution a reasonably adequate supply of water free of expense to the First Party and no charge shall be made for water so given as a substituted supply.

Tenth The Board shall not impose nor levy the domestic water rate on (1) the farm buildings and cottages at East Hopes and the farm dwelling-house buildings and cottages at Yester Mains so long as the Board are not called upon by the First Party to afford a supply to said subjects and then only in respect of such part or parts of these subjects as are actually supplied with water by the Board and (2) the said subjects at West Hopes. A.D. 1922.

Eleventh In the event of the waterworks of the town council of Haddington being transferred to the Board under the said Order the Board shall be bound to continue the free water supplies to the farm dwelling-house steading and cottages at Yester Mains all as provided for in the agreement between the First Party and the town council of Haddington and shall not be entitled to impose and levy the domestic water rate or other charges in respect of dwelling-houses or stock on said farm of Yester Mains.

Twelfth The Board shall subject to the provisions of the Order do their utmost to secure efficient gravitation or other supplies of water at a sufficient pressure for the farms on the Yester Estates and in particular for the farms of Townhead Sheriffside and Woodhead and also for Longyester public school.

Thirteenth In the event of the abstraction of water from the Hopes Water detrimentally affecting the mill at Gifford tenanted by the Messrs. Hunter and owned by the First Party the Board will contribute the sum of 150*l.* towards the cost of an oil engine for the said mill The First Party's engineer shall decide as to whether the mill has been detrimentally affected or not.

Fourteenth The First Party shall make over any interest which he may have in the present water supply works for the special district of Gifford and in consideration of this the Second Parties shall amend the appropriate clause of the Order so as to provide that for the period of 20 years from the commencement of the Order the domestic water rate to be levied by the Board within the Gifford special water supply district as existing at the commencement of the Order shall not exceed 2*d.* in the £ on owners and 2*d.* in the £ on occupiers and that in lieu of the period of 12 years stipulated for in the draft Order.

Fifteenth The Board shall before commencing to construct the said reservoir fence the ground to be occupied by the said reservoir with a permanent fence which shall be of such a character as shall be satisfactory to the First Party and as shall prevent all kinds of stock getting access to the said reservoir The Board shall provide the First Party with keys for the gates

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A.D. 1922. — leading to the said reservoir and across the said new access road The fence round the said reservoir as also all other fences and gates which may be desired by the Board shall be erected and maintained in all time thereafter solely at the expense of the Board who shall be bound to keep all fences and gates erected by them in a good state of repair.

Sixteenth The Board shall make good any drains or others interfered with either in the construction of the said reservoir and the said new road or the laying of the water pipes and in the case of any such interference shall if necessary lay new main drains to the satisfaction of the First Party's engineer.

Seventeenth The First Party shall in future leases of the farm of West Hopes insert a clause reserving power to resume the land required for the said reservoir not exceeding one hundred acres in extent on two years' notice and stating that no claim shall be competent to the tenant in respect of the land resumed for the said reservoir other than for surface damage to the other lands let to him and disturbance of stock if any The Board shall give two years' notice of their intention to take the land required for the said reservoir.

Eighteenth The Board shall free and relieve the First Party of and shall settle all claims competent to the tenants of the First Party arising out of or in consequence of their works other than the claim of the tenant of West Hopes Farm for an abatement of rent in respect of land resumed for the said reservoir.

Nineteenth The whole works shall be kept in repair by the Board after completion and they shall pay to the First Party and his tenants all damage that may be occasioned by the failure of said works or repairing or altering the same or by maintenance operations from time to time.

Twentieth In the event of the Board requiring for the purpose of their waterworks land at any other point belonging to the First Party they shall be entitled to acquire and the First Party shall be bound to convey the same to the Board to an extent not exceeding in the whole two acres The position or positions of such land and the price or prices thereof which shall not be less than 50% per acre shall failing agreement be determined by arbitration.

Twenty-first The Second Parties shall pay and free and relieve the First Party as between agent and client on the client paying scale of the whole costs charges and expenses incurred or to be incurred by him in connection with his opposition to the said Order or in connection with this agreement or preliminary or incidental thereto or arising in connection with the carrying out of the same or in connection with or arising out of or incidental

to the conveyance or conveyances to be granted in favour of the Board and that both as regards the solicitors of the First Party and of all secured creditors over the estate and the engineer and the valuator of the First Party With regard to an alimentary annuity secured over the Yester Estates the Board shall be content with the consent of the annuitant to the necessary deeds of conveyance. A.D. 1922.

Twenty-second This agreement shall be scheduled to the said Provisional Order and shall be subject to the approval of Parliament and to such alterations as the Secretary for Scotland or Parliament shall think fit to make thereon but if any material alteration is made thereon either party to it shall be at liberty to withdraw therefrom and in that event or in case the said Provisional Order with this agreement scheduled thereto shall not be confirmed by an Act of Parliament the arrangements contained in this agreement shall become null and void and both parties shall be free from the whole terms conditions and stipulations thereof except that the Second Parties shall pay to the First Party the whole costs charges and expenses so far as incurred by him provided for under head twenty-first hereof.

Lastly Both parties consent to the registration hereof for preservation and execution.

In witness whereof these presents typewritten on this and the seven preceding pages are (under declaration that the word "intimation" is interlined so as to read between the words "on" and "being" occurring in the sixth line of clause fourth typed on page third hereof and that one word in the said sixth line of said clause fourth is delete both before subscription) executed by the parties hereto in duplicate as follows videlicet They are subscribed by James Reid of Tyneholm Pencaitland a member of the said county council at Tranent on the seventeenth day of July in the year nineteen hundred and twenty-two before these witnesses Robert Archibald Lindsay solicitor Supreme Courts Three Howe Street Edinburgh and Thomas Wilson solicitor Forty-eight Castle Street Edinburgh by George Harry Adams Connor estate commissioner Gosford Estates Office Longniddry another member of the said county council and by George Cruickshank solicitor Haddington county clerk both at Haddington on the day month and year last mentioned before these witnesses Frank Rayner assistant county treasurer Haddington and William Black assistant in the county clerk's office Haddington and they are also sealed with the corporate seal of the said county council all pursuant to a resolution of the council passed at a meeting duly convened and held on the fourteenth day of July in the year nineteen hundred and twenty-two and they are subscribed by the said the most Honourable William George Montagu Marquis of Tweeddale at Edinburgh on the twentieth

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A.D. 1922. day of month and year last mentioned before these witnesses
Thomas Johnstone Carlyle Gifford writer to the signet Edinburgh
and Edmund Matthew McCabe clerk to Messrs. Baillie and
Gifford writers to the signet Edinburgh.

(Sgd.) T. J. CARLYLE GIFFORD	TWEEDDALE.
Witness.	JAMES REID.
(Sgd.) EDMUND M. McCABE	GEORGE H. A. CONNOR
Witness.	County Councillor.
(Sgd.) R. A. LINDSAY	GEO. CRUICKSHANK
Witness.	County Clerk.
(Sgd.) THOS. WILSON	
Witness.	
(Sgd.) F. RAYNER	
Witness.	
(Sgd.) W. BLACK	
Witness.	

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